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Terms of Service for Canadian clients

Terms of Service for Canadian clients

Last Updated: May 26, 2026

[Summary of Terms of Service](#)

The following is a summary of the Kraken.com Canadian Terms of Service provided solely for your convenience and informational purposes. You must read the complete Terms of Service below for the legally binding terms.

Summary of Kraken.com Canadian Terms of Service

This summary provides an overview of our Canadian Terms of Service that apply to your use of our website, platforms, trading and other services. This summary is not legally binding and is purely for informational purposes. While we hope this summary section is helpful, please read the complete Terms of Service below for the legally binding terms regarding your use of the platforms and services, including with respect to issues such as the following:

- **Applicable Terms.** The Canadian Terms of Service will only apply to you if you reside in Canada. We have separate **terms of service** that will apply to you if you reside outside of Canada.
- **Account and Eligibility.** The Terms of Service sets forth certain criteria for your eligibility to use our services and platforms. It also includes requirements about who may create an account and what you can't do with your account.

- **Our Services.** Below, you'll find terms about how you can use our services. There are fees associated with our services, and the Terms of Service provide more information on those fees and how they may be paid by you. There are also a number of ways in which you are prohibited from using our services or platforms, some of which are covered below.
- **Supported Digital Assets and Availability of Services.** Certain Digital Assets or Services may not be available or may only be available in certain jurisdictions. We also may stop supporting certain Digital Assets or may stop providing certain services.
- **Changes.** The Terms of Service discuss changes we can make to our services, platforms, or the terms themselves, including how we can suspend or terminate the services or platforms or your account. Changes to the Terms of Service, our services, or platforms may be made at any time, with or without notice. Continued use of our services and platforms is your consent to the Terms of Service and any changes to them.
- **Risks and Liability.** There are risks associated with using our services, and the Terms of Service cover some of these risks. The Terms of Service also cover your responsibility for taking on risk, limit our liability to you, and limit the remedies you may have against us and how you may seek those remedies.
- **No Insurance.** We are not a bank or other depository institution. Your account is not a deposit account or bank account. Your account and digital assets are not covered by insurance against losses or subject to protection by deposit insurance (e.g. CIPF, CDIC) or other investor protection insurance schemes.
- **Annexes.** You may have the opportunity to use additional services we provide. The Annexes to the Terms of Service contain terms and conditions on these additional services.
- **Dispute Resolution.** We hope to avoid disputes, but if there is a dispute, the Terms of Service outline the informal and formal processes we have in place to resolve it.
- **Terminate Account.** You may terminate your account at any time by transferring your Digital Assets and redeeming your Fiat Balances to a Financial Account and ceasing to use our services. Certain terms of our relationship survive terminating your account, and these terms are detailed below.

The following is the binding and enforceable Canadian Terms of Service.

Kraken.com Canadian Terms of Service

Last Updated: May 26, 2026

Please read these Canadian Terms of Service (including all Annexes, "**Terms**") carefully, as they are binding and govern your use of our services ("**Services**", including the services set forth in Annexes hereto), and our websites (including **kraken.com**, and **pro.kraken.com**), and mobile applications through which you access our Services ("**Platform**"), along with any applicable third-party terms you

may have agreed to as part of using or receiving our mobile applications (such as terms for the Apple App Store or Google Play, if applicable). If these Terms conflict with any such third-party terms, these Terms will control to the extent of the conflict. By accessing or using our Services or Platform, or by creating an Account (as defined below), you agree to these Terms.

These Terms may change at any time and without notice, including updates to (1) reflect changes to our Services and Platforms or how we do business; (2) reflect the addition of new services, features, technologies, or offers; (3) address legal, regulatory, or security development; or (4) prevent harm to our Services and Platforms or to those using our Services and Platforms. These Terms can only be modified in writing, and any change will be effective as of the Last Updated date set forth above. You should frequently check these Terms for updates. If you continue to access or use our Platform or Services, after we change these Terms, you agree to all our changes.

These Terms are a legally binding agreement between “**you**” (an individual, or an entity acting through an authorized individual) and Payward Canada, Inc. (“**we**”, “**us**”, “**our**”, “**Kraken**” or “**Payward**”), except for those Services provided by Payward Trading, Ltd. as described in Annex A, in which case these Terms are a legally binding agreement between you and Payward Trading, Ltd.

To make these Terms easier to read, we have organized them as follows:

Terms of Service

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1. Eligibility; Account

Eligibility

To use most of our Services, you need to create an account with us. Your account may hold Digital Assets or a Fiat Balance (“**Account**”). To use any of our Services, or to create an Account, you must meet at least the following conditions (“**Conditions**”):

- if you are an individual, be 18 years or older and a resident of Canada,
- if you are an entity, be duly organized and validly existing under the applicable laws of Canada or a province or territory of Canada, and be acting through an authorized individual who is 18 years or older,
- have a current and valid email address, mobile phone number, and street address,
- have full power and authority to enter into these Terms without violating any other agreement you have made,

- not have been restricted from using our Services,
- to the best of your knowledge, the funds being used to transact under the Agreement: (i) were not obtained or derived, directly or indirectly, as a result of illegal activities; (ii) are not intended to be used, directly or indirectly, in order to carry out a criminal offence or a terrorist activity or for the benefit of a terrorist group, (iii) are not owned or controlled by a terrorist group; and (iv) are not being tendered on behalf of a person or entity who has not been identified to you. You are not a person or entity identified on a list established under section 83.05 of the Criminal Code (Canada) or in any Regulations made under the United Nations Act (Canada), the Freezing Assets of Corrupt Foreign Officials Act (Canada), the Justice for Victims of Corrupt Foreign Officials Act (Sergei Magnitsky Law) (Canada), the Special Economic Measures Act (Canada) or any other statutes or regulations made under the laws of Canada or any other global jurisdiction which take legislative measures against terrorist financing and against financial dealings with certain sanctioned individuals and entities.
- you consent to the use and disclosure of your personal information by Kraken as described in our Global Privacy Policy, which is incorporated by reference into these Terms of Service.

In addition, you may be required to comply with additional requirements to open an Account or use the Services in the jurisdiction in which you are located. We will use reasonable efforts to notify you of such additional requirements, but your ability to open an Account and/or use the Services will be subject to those additional requirements whether notice has been provided or not. By making an Account or using the Services, you represent and warrant that you meet all of these Conditions. If you stop meeting these Conditions, you must immediately notify us and stop using your Account and the Services. We may require proof that you meet these Conditions. Even if you meet these Conditions, we may, in our discretion, determine that you are not eligible to have an Account or use the Services.

You authorize us to make inquiries, whether directly or through third parties, that we consider necessary to verify your identity, to confirm the above eligibility requirements, to protect you or us against fraud or other financial crime, and as we determine may be necessary to facilitate compliance with these Terms and applicable laws. You understand and agree that we may take action we reasonably deem necessary based on the results of such inquiries, that we have no obligation to inform you of the results of any inquiry and that you expressly waive any obligation we (or are affiliates) may have to take, or advise you of, any possible remedial measures. When we carry out these inquiries, you acknowledge and agree that your personal information may be disclosed to credit reference and fraud prevention or financial crime agencies and that these agencies may respond to our inquiries in full.

In connection with Kraken's global operations and our compliance with applicable laws across the jurisdictions where Kraken operates, you acknowledge and agree that information regarding your use of the Kraken Services and the Platform may be disclosed to relevant governmental, regulatory, or law enforcement authorities, including those outside the jurisdiction where you reside to the extent that Kraken is required to make such disclosures. Such disclosures will only be made in accordance with the laws with which Kraken must comply, as well as in response to court orders or other lawful requests made by such authorities in those jurisdictions.

Your Activities

You agree to, and represent and warrant that you will:

- not use your Account for the benefit of any person other than you,
- not share your Account or password with anyone else,
- maintain the security of your Account, including by using a strong password for your Account that you don't use anywhere else,
- notify us immediately if you discover or suspect any security breaches related to your Account,
- take responsibility for all activities that occur under your Account, and accept all risks of any authorized or unauthorized access to your Account, to the maximum extent permitted under applicable law, and
- provide accurate, complete, truthful, and updated information (including email address, mobile phone number, and street address) at all times when using any Account or Service, including when conducting a Trade, Deposit, and Withdrawal, and when otherwise prompted by any screen displayed within the Services or on our Platform.

We may, in our discretion, determine that it's necessary or appropriate to temporarily suspend or even terminate your Account. Please see section 16 below for information on the suspension or termination of an account.

You are solely responsible for all acts and omissions that occur under your Account, and you will be deemed to have made all actions taken using your Account.

2. Deposits of Crypto & Issuance of Fiat Balances

Financial Accounts

Many of our Services require you to have Digital Assets or a positive Fiat Balance in your Account. To transfer Digital Assets into your Account ("**Deposit**") or transfer Fiat Currency to a Designated Financial Institution to be issued a Fiat Currency balance in your Account ("**Issuance**"), you need to be the actual or beneficial owner of a financial account or wallet maintained outside the Services ("**Financial Account**"), and your Financial Account must be approved by us. We don't approve all Financial Accounts, and may revoke our approval of any Financial Account at any time without notice.

We are not responsible for the use, management, or security of any Financial Account. By using a Financial Account in connection with the Services, you represent and warrant that (1) you are the beneficial owner of the Financial Account, (2) you are in compliance with all terms and conditions applicable to the Financial Account, (3) you have the authority to make deposits to the Financial Account and take withdrawals from the Financial Account, and (4) you have provided complete and accurate information to us regarding the Financial Account. We may require you to verify that you control a Financial Account before accepting any transfer from it, and you agree to provide us all necessary information to make such verification.

Our Services only support certain types of Digital Assets. See Section 8 for more information. If you attempt to Deposit any cryptocurrency or Digital Asset that our Services don't support or accept, you may permanently lose such cryptocurrency or Digital Asset and we won't be liable for your loss. We may, at our sole discretion, attempt to identify and return such assets, but we have no obligation to do so. If we choose to do so, we may charge you a fee to cover our costs and expenses related to the identification and return of such Digital Asset or cryptocurrency. Such fee may be withheld from the Digital Asset or cryptocurrency that was the subject of the improper Deposit attempt.

Execution

We don't control or make any guarantees about the amount of time it takes to complete a Deposit or Issuance. This time frame depends upon the performance of third parties, including third-party financial institutions or payment services.

Deposits and Issuances may not be cancellable once initiated. All Deposits and Issuances are final and non refundable once made, but you may be able to Redeem Fiat Balances or Withdraw Digital Assets in accordance with Section 3 (Withdrawals & Redemptions). We may, at any time and without notice, reject any Deposit or impose limits on Deposits you can make (for example, in magnitude and frequency) or a Fiat Balance Issuance. If you reverse a Deposit, Issuance, payment, or other transaction made from a Financial Account, you authorize us, in our sole discretion, to cancel the transaction or to use alternate Digital Assets and Fiat Currency in your account as necessary to complete the transaction or resolve any resulting shortfall or negative balance, including to exchange Digital Assets or Fiat Currency in your account for alternative types of Digital Assets or Fiat Currency and deduct any applicable fees.

We may charge you Fees for Deposits and Issuances. See Section 7 for additional information on Fees. There may also be third-party fees associated with use of Financial Accounts, and we are not responsible for any such third-party fees.

Fiat Currency

Whenever you instruct your bank or payment service provider to deposit Fiat Currency with a Designated Financial Institution or any other acceptable funding method that may be offered from time to time, we will issue a Fiat Balance to your Account once such funds have been cleared and received by the Designated Financial Institution. You agree that any Fiat Balance in your Account is only for the purchase of Digital Assets or Redemption to a Financial Account approved by us. We don't pay interest on any Fiat Currency balances held in your Account.

All of your Fiat Currency deposits will be held in a designated trust account with a Designated Financial Institution.

Custody and Title of Digital Assets

Digital Assets held within your Account are custodial assets and are held by us in trust for your benefit in a designated trust account at a Crypto Custodian or online in "hot" wallets administered by us. Title to all Digital Assets you hold within your Account remains with you at all times and does not transfer to us, except as provided herein. None of the Digital Assets in your Account or any other customer Account are our property, are loaned to us, or are subject to the claims of our creditors, and we don't represent or treat Digital Assets in your Account, or in any other customer's account, as our property. However, a court may disagree with our treatment of your Digital Assets and subject them to claims of our creditors. We can't grant a security interest in the Digital Assets held in your

Account (but we don't represent or warrant that any Digital Asset is free or clear of any security interest or other lien or encumbrance). Except as required by a facially valid court order, or as set forth in these Terms, we won't sell, transfer, loan, hypothecate, or otherwise alienate any Digital Assets in your Account unless you instruct us to. If you elect to participate in Bonded Staking, the foregoing sentence is subject to the Bonded Staking restrictions set forth in Section 5.

You own and control the Digital Assets in your Account. Subject to these Terms (including its Annexes), any outages or downtime, a court order, other applicable policies, or as otherwise provided herein, you may withdraw your Digital Assets from your Account as described in these Terms. In order to more securely and effectively custody Digital Assets, we may use shared blockchain addresses, that we control, to hold Digital Assets on your behalf and to hold on our behalf. We maintain separate ledgers for your Account and our accounts.

We may hold Digital Assets in your Account in a variety of ways, including across multiple blockchain protocols, such as "Layer 2" networks, alternative "Layer 1" networks, or side chains. In connection with holding your Digital Assets, we may transfer such Digital Assets off of the primary blockchain protocol and hold such Digital Assets on shared blockchain addresses we control or on alternative blockchain protocols in forms compatible with such protocols. You agree that all forms of the same Digital Asset that are held and made available across multiple blockchain protocols may be treated as fungible and the equivalent of each other, without regard to (a) whether any form of such Digital Asset is wrapped or (b) the blockchain protocol on which any form of such Digital Asset is stored.

Funding Methods

We may permit you to make a payment associated with the Services (including a Deposit, Issuance, or Trade) from your Financial Account(s) using a credit card or money transfer from your Financial Account (e.g., a SWIFT transfer or Interac e-Transfer). If you make a payment using a money transfer or credit card, you authorize us to debit your associated Financial Account automatically, but you acknowledge that there may be a significant delay in crediting your Account with the amount debited (less any Fees), including delays due to third party financial institutions or payment processors. If you select a credit card or wallet as your payment method, and any transaction using such payment method falls on a weekend or holiday or after business hours, the debit may be executed on a later business day, although the transaction fees at the time of the regularly scheduled transaction will apply. If your payment method fails, we will notify you that the transaction is canceled and may use the remedies set forth in these Terms to recover any amount owed to us. Credit card payments and money transfers are not controlled by us, and we are not liable for any delay or rejection of any such payments or any other losses, fees, or charges associated with such payments. Your use of money transfers or credit card payments may be subject to third-party terms between you and the third party. We are not a party to such third-party terms and have no obligation or liability to you under such third-party terms.

If you set up a recurring credit card payment or a money transfer associated with our Services, including a recurring Trade, you authorize us to execute any rejected payment again at a later time. Each attempted execution is subject to the Fees set forth in these Terms. You authorize us to deduct Fees directly from any assets in your Account without notice. We may require that your Account has sufficient funds to cover, at a 1:1 ratio, any payments using credit card or money transfers for 120 days post deposit ("**Unsecured Deposit Hold**"). You may not withdraw the funds associated with the Unsecured Deposit Hold prior to the resolution of the Unsecured Deposit Hold.

3. Withdrawals of Crypto & Redemptions of Fiat Balances

You may be able to transfer Digital Assets from your Account (“**Withdraw**” or “**Withdrawal**”) or redeem Fiat Balances into Fiat Currency deposited to a Financial Account approved by us (“**Redeem**” or “**Redemption**”). At most, you can Withdraw the total amount of Digital Assets or Redeem Fiat Balances in your Account, less any Fees associated with such Withdrawal or Redemption. You cannot make a Withdrawal if the balance of Digital Assets or a Redemption if the Fiat Balance in your Account is less than any minimum balance requirements, any amounts needed to satisfy any of your open positions, or any Fees owed by you.

When you request a Withdrawal or Redemption, you authorize us to remove the designated Digital Assets from your Account, or direct the Designated Financial Institution to deliver the amount of Fiat Currency for a requested Redemption to you (and to reduce the balance of Fiat Currency in your Account), in each case less any Fees. A Withdrawal or Redemption may not be able to be completed partially or fully, including because the Financial Account rejects your Digital Assets or Fiat Balance or the Financial Account is unavailable. We will attempt to complete Withdrawals and Redemptions that can be completed, whether partially or fully, within a reasonable time after your request, but we cannot guarantee Withdrawals or Redemptions will be completed within any particular time. We are not responsible for any damages resulting from rejected Withdrawals or Redemptions.

Withdrawals and Redemptions may not be cancellable once initiated. All Withdrawals and Redemptions are final and non-reversible once made, but you may be able to Deposit the withdrawn Digital Assets or instruct an Issuance of a Fiat Balance in accordance with Section 2 (Deposits). We can, at any time and without notice, reject any Withdrawal or Redemption or impose limits on any Withdrawal or Redemption you can make (for example, in magnitude and frequency).

We may, in our discretion, determine that it’s necessary or appropriate to suspend your ability to make Withdrawals or Redemptions. We reserve the right to suspend your ability to make Withdrawals or Redemptions altogether for an indeterminate amount of time to ensure, as determined in our sole discretion, compliance with these terms or any legal, regulatory, or administrative obligation or guidance.

4. Trades

Generally

Our Services may allow you to trade through your Account:

- a certain Digital Asset for another Digital Asset,
- a certain Digital Asset for a certain Fiat Balance, or
- a certain Fiat Balance for a certain Digital Asset
- a certain Fiat Balance for a certain other Fiat Balance (any of the foregoing, a “**Trade**”).

The Digital Assets that may be available for Trades may change, without notice. See Section 7 for more information. In addition, you may not be able to Trade certain Digital Assets for certain other

Digital Assets or Fiat Balances, and you may not be able to Trade Certain Fiat Balances for certain other Fiat Balances or Digital Assets. See our website for more information.

Please refer to our Trading Guide for more information regarding trading, including some important terminology associated with trading. If you don't understand everything in our Trading Guide or important terminology around trading, don't make any Trades.

Execution

See Section 2 (Deposits of Crypto and Issuance of Fiat Balances) for more information on funding your Account with Digital Asset or Fiat Balances prior to making a Trade. To make a Trade, you must submit an order through the Services ("**Order**"). Please see our **Order Types** page for a description of the various types of Orders that our Services may permit you to make ("**Order Types**"). Certain Order Types may not be available to you or may be subject to additional terms and conditions set forth in an Annex. We can remove or change any Order Type at our discretion at any time. Order Types may be limited to certain Digital Assets and not all Digital Assets may be the subject of a Trade for every Order Type.

When you submit an Order, you authorize us to execute a transaction in accordance with such Order (and the Order Type you choose, if applicable) and to charge you any applicable Fees (defined below). We cannot guarantee any Order will trade at any particular exchange rate and the exchange rates that may be used for your Order may differ from such rates provided by third parties. We are not responsible for matching any third-party rates or providing you any particular rates. The actual rate at which an Order is executed may be different from the current market exchange rate indicated by our Services at the time of your Order, and we are not liable for any such difference or any price fluctuations of Digital Assets or Fiat Balances. Any rate shown in our Platform is only valid during a specific period and may not be current. If the Order Type you choose for an Order is set to execute only at a certain price or only if certain contingencies are met (for example, a limit order), we can't guarantee that such Order will ever be executed in whole or in part.

We may provide you confirmation of Trades you successfully execute. If we don't provide confirmation, that doesn't mean the Trade didn't happen. Your account "History" page will reflect successfully executed transactions. Proceeds from a successfully executed Trade will be credited to your Account, less any applicable Fees, and the Digital Assets or Fiat Balances you traded for such proceeds will be removed from your Account.

We may reject any Trade or other transaction at our sole discretion, whether confirmed by you or not, and we are not liable to you for any rejection.

Trades in which you enter an order with a specified trading pair and quantity after receiving a quote from Kraken providing indicative trade terms and fees, including those in which you submit limit or market buy or sell orders in relation to a trading pair specified as a synthetic market (being a market in which you may place market or limit orders to exchange one Digital Asset for a Fiat Currency or another Digital Asset, and in which any order book or pricing data displayed is indicative of Kraken's pricing for the relevant asset pair, derived from one or more underlying reference markets) on the Kraken Platform, are filled by us on a principal basis.

Trades in which you submit limit or market buy and sell orders, including through Application Programming Interface (API) access to the Kraken Platform, are executed by us on an agency basis, on your behalf. This excludes Trades in which you submit limit or market buy or sell orders in relation

to a trading pair specified as a synthetic market on the Kraken Platform, which will be filled by us as your counterparty.

Recurring and Custom Trades

You may have the option to make Trades on a recurring or custom basis using our Service. If you elect to make recurring or custom Trades, you authorize us to initiate recurring or custom electronic purchases or sales using Digital Assets and Fiat Balances in accordance with your selections and using any of your corresponding Financial Accounts, if applicable. Your authorization will remain effective until you change your recurring or custom Trades settings in your account settings. Changes in your recurring or custom Trades settings may take up to one day to become effective. You agree to keep your payment method updated in your Account as long as you have recurring or custom Trades active or scheduled.

Your recurring Trades will occur based on your period selection (e.g., daily, weekly, bi-weekly, monthly) until canceled. Recurring Trades scheduled for the 29th, 30th, or 31st day of a month will be processed on the earlier of the date scheduled or the last day of the applicable month. For example, recurring Trades scheduled for the 31st will be processed on the 30th in April, June, September, and November. We may attempt to execute your recurring Trade on the day that you select, but transaction times may vary. You acknowledge that the amount of any Digital Asset you purchase or sell in each recurring Trade will depend on the market price at the time of the Trade and will only be determined once the Trade is executed.

While we will attempt to fulfill custom Trades at the chosen price once the custom Trade is triggered, there is no guarantee that the order will execute at the price chosen in the custom Trade and the custom Trade may not execute immediately after it is triggered.

We may reject or cancel a recurring or custom Trade (in whole or in part) for any reason. We are not liable for any recurring or custom Trade or any failure to make a recurring or custom Trade (including any rejection or cancellation of a recurring or custom Trade in whole or in part). You should regularly check the status of your recurring and custom Trades. We won't verify the information or details of your recurring or custom Trades. You agree that the information and details of your recurring and custom Trades as provided by you are accurate and complete and as such may be treated and acted upon by Kraken.

We may, at any time and without liability, suspend or delay recurring or custom Trades (in whole or in part) without notice or terminate recurring or custom Trades by providing notice to you, unless such notice is prohibited by law.

You understand that applicable transaction fees and taxes may change. Details regarding current fees can be found at our Fee Schedule under the Instant Buy/Sell tab. You are presented with the applicable fees charged by us before entering into the transaction. Your confirmation of the transaction constitutes agreement to pay all such applicable fees. You will not be charged any such fees in the unlikely event your transaction is rejected. Your payment provider may charge additional fees in connection with your transaction. You understand and agree that you are fully responsible for your payment providers' fees for all recurring and custom Trades.

Bundles

Bundles are portfolios of Digital Assets that are automatically rebalanced in the background by us, allowing you to invest in a range of Digital Assets all at once, while the rebalancing keeps portfolios

on track so that when the market changes, the portfolio still captures your same investment preference. When you use our bundles product, you will first need to choose a pre-selected portfolio of Digital Assets (each a “**Bundle**”) from a number of themed Bundles available. In certain cases we may give you the option to customize a Bundle for example by adjusting Digital Asset weightings or selecting specific Digital Assets you wish to include in the Bundle, although this feature will not always be available.

When you allocate Fiat Currency to the portfolio, we will execute trades to purchase the Digital Assets listed for that Bundle at the same weightings of Digital Assets as is allocated in the Bundle unless agreed otherwise with you. However, where this would involve us executing trades below the minimum trade size, these trades will not be executed.

We will automatically rebalance your Bundles at a frequency and according to the allocation parameters set by us (“**Rebalancing**”), unless agreed otherwise with you. Allocation parameters could be set so that your portfolio is updated to mirror the Digital Assets and weightings of the Bundle, or according to other factors as further set out on our Site. By using our Bundles product, you are authorising us to execute trades to buy and sell Digital Assets in your portfolio at a frequency set by us, to reallocate weightings of Digital Assets in your portfolio according to the allocation parameters.

We may update the allocation parameters or weightings within a Bundle at any time in our sole discretion without prior notice by adding or removing Digital Assets or changing the weightings of Digital Assets in a Bundle, for instance as new Digital Assets are added or removed from our Platform, or as market caps change. Unless we give you the option to opt-out of Rebalancing and you choose to opt-out, your portfolio will be updated during Rebalancing to mirror the updated Bundle composition, according to the updated allocation parameters and weightings.

Fees for use of the Bundle product will be charged as a percentage of the price of buy and sell transactions, with no charges for rebalancing your Bundle portfolio.

You acknowledge that you are fully responsible for deciding which Bundle to invest in (if any) and we do not provide investment advice or personal recommendations. You understand that market conditions may impact the effectiveness of rebalancing strategies and that we give no representations or warranties about the current or future performance of Bundles or Rebalancing.

OTC and Prime Execution Trades

If You meet the relevant eligibility criteria, You may have the option to make Trades using our over-the-counter or Prime execution Service (collectively “Execution Services”). Any trades entered into in connection with the Execution Services are filled by us on a principal basis.

You may terminate your Execution Services engagement with us at any time by providing written notice (email sufficient) if there are no outstanding transactions. Should you give notice while a transaction is outstanding, your engagement will not be terminated until such transaction is complete. In accordance with Section 16 below, we reserve the right, to temporarily or permanently, suspend the Execution Services, including terminating any outstanding transactions, at our sole and absolute discretion at any time.

You acknowledge and agree that, at the time you make use of any of the Execution Services with funds held on the Kraken platform or in a third-party wallet, you have the legal right to control and manage such funds, and such funds may not necessarily be owned by you but are free and clear of any liens and encumbrances.

You understand and agree that all fees associated with the Execution Services are disclosed prior to executing a transaction and are contained in the confirmation for your transaction or otherwise communicated to you. The fee may be in addition to the quoted price and listed on the confirmation or the quoted price may be inclusive of all fees. There are no exit fees associated with the Execution Services.

Cancellation

All Trades are final and non-refundable. All Orders are non-cancellable, including before or after we execute a Trade, unless otherwise provided in these terms. In some circumstances, you may have the opportunity to request cancellation of an Order before we execute the Trade, but we may refuse any cancellation request at our sole discretion. If we fulfill such a cancellation request, that doesn't mean we will cancel future orders in the same or similar circumstances. If your Trade or other transaction is not successful or your payment method does not have sufficient amount of Fiat Balance or Digital Assets to complete the Trade or other transaction, you further authorize us, in our sole discretion, to cancel the Trade or transaction or to use alternate Digital Assets and Fiat Currency in your account as necessary to complete the transaction or resolve any resulting shortfall or negative balance, including to exchange Digital Assets or Fiat Currency in your account for alternative types of Digital Assets or Fiat Currency and deduct any applicable Fees and taxes.

Errors

In the event of an error, whether via our services or platforms, in a purchase order confirmation, in processing your purchase, in funding your account, in transferring Fiat Currency or Digital Assets to a Financial Account, or any other transaction, we reserve the right, and you authorize us, to correct such error, including by revising the transaction (including charging the correct price), canceling the transaction, or taking any other action to resolve the error (including exchange Fiat Currency or Digital Assets in your account for alternative types of Fiat Currency or Digital Assets and deducting any applicable Fees and taxes to correct the error).

Insufficient Assets

If you have an insufficient amount of Fiat Balance or Digital Assets in your Account to complete a Trade, we may choose to cancel the entire Trade or fulfill a partial Trade using the amount of Fiat Balance or Digital Assets currently available in your Account, less any Fees and taxes.

Restrictions

We can, at any time and without notice (1) refuse to execute any Trade or Order at our sole discretion, including if you don't have sufficient Digital Assets or Fiat Balance held or reflected, as applicable, in your Account and (2) impose limits on Trades (for example, limiting the number of open bids, offers, or Orders or restricting Trades from certain locations).

Availability

While we employ measures to ensure that our Services are accessible 24 hours a day and 7 days a week, including during periods of maintenance, high volatility and/or demand, we cannot guarantee uninterrupted or error-free operation of our Services.

5. On-Chain Staking

In connection with our Services, you may have the option to contribute and earn rewards by participating in our “On-Chain Staking Services” (defined below). On-Chain Staking Services include Bonded Staking and Flexible Staking, as described below.

Kraken may provide you the option to contribute and earn rewards by participating in our “On-Chain Staking Services” (defined below). When you create an account, Kraken will automatically enroll eligible assets into the On-Chain Staking Services unless the client chooses to opt out of this automatic enrollment within the settings of their account. The On-Chain Staking Services are a separate and distinct IT service, which means a general commercial activity that is provided to you by means of a technical IT infrastructure and your fulfillment of all applicable eligibility criteria. We may perform any or all of the On-Chain Staking Services directly or through one or more service provider(s). Please refer to the resources provided on our Platform for more information regarding On-Chain Staking Services.

On-Chain Staking Services

Whether you are automatically enrolled into the On-Chain Staking Services or you elect to stake a Digital Asset that is eligible for staking (each, a “**Supported Token**”), you instruct us to stake all or a part of your holdings of such Supported Token. You retain ownership of each Supported Token that is staked and each Supported Token remains your property when staked. The Section of the Terms titled “Custody and Title of Digital Assets”, which applies to Digital Assets, also applies to Supported Tokens when they are staked.

Opting into On-Chain Staking Services & On-Chain Staking Reward Terms

In order to use the On-Chain Staking Services, you must select the Supported Token to stake, and the amount you wish to stake, from your Account. We will remit to you the applicable percentage of staking rewards received from the Supported Token protocol attributable to your staked Supported Tokens (“**Staking Rewards**”), provided that the applicable percentage and timing of such remittances will: (i) be determined by us in our sole discretion; (ii) be subject to our staking fee; (iii) vary based on the reward rate prescribed by the Supported Token protocol; and (iv) vary based on whether you have elected to participate in Bonded Staking or Flexible Staking. You understand and agree that we don't guarantee that you will receive Staking Rewards and that the applicable percentage (i) is an estimate only and not guaranteed (and that past Staking Rewards are not indicative of expected future Staking Rewards), (ii) may change at any time in our sole discretion, and (iii) may be more or less than the actual Staking Rewards we receive from the Supported Token protocol. For all eligible stakeable assets, you understand and agree that we, in our sole discretion, may limit the amount of assets that you are able to stake. For stakeable assets eligible for Rewards, individual limits on staking will be updated from time to time and are viewable here. Your Account will provide further details regarding the Staking Rewards attributable to your staked Supported Token.

Bonded Staking

When you elect to participate in Bonded Staking, you are instructing us to commit all of your holdings in the Supported Token that you have selected to stake on-chain to that Supported Token's blockchain protocol. After you elect to unstake, you won't be able to access your tokens until the relevant unbonding period has elapsed based on the blockchain protocol.

Flexible Staking

When you elect to participate in Flexible Staking, you are instructing us to commit all of your holdings in the Supported Token to our staking program; however, we stake only a portion of the assets you select to stake on-chain. We determine an appropriate portion of Supported Tokens to hold for the purpose of maintaining a sufficient amount of Supported Tokens to satisfy unstaking requests from all Flexible Staking users. Generally, this means that after you elect to unstake, you will be able to access your tokens immediately without waiting for the unbonding period to elapse based on the relevant blockchain protocol. In the unlikely event that you elect to unstake during a period when an insufficient amount of a particular Supported Token is available to satisfy all unstaking requests from Flexible Staking users we reserve the right, in our sole discretion, to delay the release of any of your remaining unstaked assets under the Flexible Staking program after the relevant unbonding period has elapsed based on the blockchain protocol.

Slashing Penalty

A determination by the Supported Token protocol that the On-Chain Staking Service has been erroneously operated may result in a "slashing penalty" (loss of staked Digital Assets) and non-payment of the applicable Staking Rewards by the Supported Token protocol. We agree to compensate you for any such penalties, unless the penalty is a result of (i) your act or omission, (ii) Supported Token maintenance, a bug, or an error, (iii) an act by a malicious actor or hacker, (iv) a breach of these Terms, whether by you or any other person or entity, or (v) a Force Majeure Event (defined below).

No Guarantee of On-Chain Staking Services

We cannot guarantee uninterrupted or error-free operation of the On-Chain Staking Services or that we will correct all defects or prevent disruptions or unauthorized access. We may suspend or discontinue the On Chain Staking Services in our sole discretion at any time. In the event of any disruptions, suspension, or discontinuance of the On-Chain Staking Services, any staked Supported Tokens may stop generating the Staking Rewards and you may not receive any (and you may forfeit all) Staking Rewards whatsoever. The decision as to whether and to what extent On-Chain-Staking Services are provided is at our sole discretion.

You hereby acknowledge and agree that we disclaim and have no responsibility for any loss, liability, or damage you may incur, directly or indirectly, in connection with the On-Chain Staking Services, including any loss, liability or damage arising directly or indirectly from: (a) your use of or inability to use the On Chain Staking Services; (b) any interruption, error, or defect of the On-Chain Staking Services; (c) any third-party disruption of or unauthorized access to the On-Chain Staking Services; or (d) any suspension or discontinuance of the On-Chain Staking Services.

6. Layer 2 Transactions

You may have the option to utilize “Layer 2” networks in connection with our Services. We make this option available to you solely for your convenience and we don't require that you use a Layer 2 network. We may, at our discretion, discontinue or change the ability of Layer 2 networks (or certain Layer 2 networks) to connect with our Services or Platform at any time. You are solely responsible for your selection of and any use of a “Layer 2” network in connection with our Services and we make no representations, warranties, or guarantees that any Layer 2 network will connect with our Services or Platform or that such Layer 2 network will function or perform in accordance with your expectations. You are solely responsible for, and you hereby consent, acknowledge and agree that we disclaim and have no responsibility for, any loss, liability, or damage you may incur, directly or indirectly, as a result of your use of a Layer 2 network.

7. Fees; Taxes

Our Fees

You agree to pay us all applicable fees associated with your use of the Services (“**Fees**”), including fees for Trades, Deposits, Issuances, Redemptions and Withdrawals. You authorize us, or our designated third party providers, to charge or deduct Fiat Balances or Digital Assets held or reflected, as applicable, from your Account to cover any applicable Fees associated with your use of the Services. The relevant Fees are shown in our [Fee Schedule](#).

Transactions using the Instant Buy/Sell Services are subject to fees and a spread that is included in the transaction price. Applicable transaction fees and spreads may change. Our current fees can be found in the Fee Schedule under the Instant Buy/Sell tab. Fees may differ depending on the selected payment method (e.g. account balance, card, Interac). Spreads may be determined based on a combination of factors, including market conditions, asset, order size, type of trade, participation in Kraken's VIP program, and trading and custodial activity. Kraken occasionally tests changes to fees and spread. We will show you the total amount, which includes the spread and fees, each time you preview a trade and afterwards in your transaction history.

Your payment provider may charge additional fees in conjunction with your transaction, however we do not know the fees charged by your payment provider. You understand and agree that you are fully responsible for your payment providers' fees for all transactions.

We may change the fees and fee Schedule at any time, without notice. Changes to our fee Schedule are effective as of the effective date shown on the fee Schedule, and changes will apply prospectively to your use of the services.

In the event we determine there are insufficient funds to pay any Fees, you hereby authorize us to sell Digital Assets from your Account sufficient to pay any Fees due. In addition, to the extent Fees are required to be paid in a particular denomination of Fiat Currency, you authorize us to receive the proceeds of any sale of Digital Assets in such denomination of Fiat Currency and/or to convert any Fiat Balance held in your account to the required denomination. You are responsible for any and all additional Fees that may be incurred to sell Digital Assets and/or convert Fiat Balance denominations in order for the Fees to be paid to us.

If you fail to pay Fees or any other amounts owed to us, interest will accrue on such unpaid amounts at the greater of the rate of 18% per year, or the maximum amount allowed by law. In addition, we may refer your outstanding amounts to a third party for collection, and we will charge you a

collection fee of 18% of the outstanding amounts due or the maximum percentage permitted by applicable law, to cover our collection-related costs.

Third-Party Fees

Your use of the Services may also incur third-party fees, such as fees associated with your Financial Account, or other fees, such as gas fees. You are solely responsible for paying all such fees.

Taxes

You alone are responsible for determining what taxes apply to your use of the Services, including for Trades, Deposits, and Withdrawals, and for reporting and remitting the correct taxes to the appropriate tax authorities. You agree that we have no responsibility or liability for determining what taxes apply or for collecting, reporting, withholding, or remitting any taxes arising from any trades or transactions, unless otherwise required by law.

Notwithstanding anything herein to the contrary, we may withhold (or cause there to be withheld, as the case may be) from any amounts otherwise due or payable to you such federal, national, provincial, local income non-income, or other taxes as may be required to be withheld pursuant to any applicable law or regulation of any jurisdiction or taxing authority. You authorize us, in our sole discretion and in lieu of a separately stated tax amount, to increase any applicable Fees to account for taxes owed on a particular transaction undertaken using our services.

Kraken and our affiliates are subject to various obligations imposed by governments and regulatory authorities of various jurisdictions. These obligations may require us to request additional information, documentation or certifications from you and process certain personal data for identity verification, payment processing, compliance with court orders, applicable laws (including tax, anti-money laundering and economic sanctions laws in Canada and other jurisdictions) or other purposes not disclosed herein. Please refer to our Global Privacy Notice, which is incorporated by reference into these Terms of Service for Information we may collect and disclose about you. These obligations may arise at various times, including, but not limited to, client on-boarding, payment processing and systemic checks for risk management, and may change without notice. We reserve the right to lock, freeze, disable and close accounts as deemed necessary by us in order to comply with any such legal and regulatory obligations now existing or hereinafter imposed.

8. Supported Digital Assets and Fiat Currencies

The Digital Assets and Fiat Currency supported by our services are identified on our website (see [here](#) for supported Digital Assets and [here](#) for supported Fiat Currency) and may change at any time, without notice, in our sole discretion. Certain Digital Assets or Fiat Currencies may not be available for a Trade, Deposit, Issuance, Withdrawal, or Redemption at all times. The availability of Digital Assets or Fiat Currency for a Trade, Deposit, Issuance, Withdrawal, or Redemption on the Platform does not guarantee that such Digital Assets or Fiat Currency will be available for a Trade, Deposit, Issuance, Withdrawal, or Redemption in the future. You are solely responsible for monitoring which Digital Assets and Fiat Currency are supported by the Services. We are not liable for discontinuation of support of any particular Digital Asset or Fiat Currency, even if you are engaged in a time-sensitive Trade, Deposit, Issuance, Withdrawal, or Redemption. We reserve the right to discontinue supporting any Digital Asset or Fiat Currency with or without notice. You acknowledge and agree that we may take any action necessary to discontinue our support of a Digital Asset or Fiat Currency, including but not limited to canceling your trade instructions and requiring you to remove

discontinued Digital Assets or Fiat Balances from your Account in a reasonable period of time, and under no circumstances will we be liable to you for any direct or indirect losses, damages, or costs that you may suffer in connection with any actions or inaction we may take in accordance with this Agreement to discontinue our support of a Digital Asset or Fiat Currency.

We make no promises, guarantees, or warranties regarding forks, airdrops, migrations, or the addition of new Digital Assets, and you should not assume that we will list, credit, or otherwise support any forked, airdropped, or migrated Digital Asset. If you wish to participate in a fork, airdrop, or migration, you should withdraw the affected Digital Asset to your own private wallet well in advance of any applicable deadline.

We may receive direct or indirect benefits associated with providing support for certain Digital Assets due to agreements we enter into with Digital Asset issuers related to assisting with marketing, technical integration, or other services relevant to particular Digital Assets. We subject all Digital Assets, regardless of whether we benefit from the provision of any services to their issuers, to the same strict review process and guidelines in determining whether to support them on our services or Platforms.

9. Content; Feedback

Our Content. We or our licensors own (1) our Services and Platform, (2) all content, materials, software, and trademarks found on them, (3) the selection and arrangement of them, and (4) all intellectual property rights in them (collectively, “**Our Content**”). So long as you comply with these Terms, you are permitted to use our Services, and Our Content made available to you as part of our Services, but only for your own benefit. We can take away this permission at any time for any reason. You don’t have or acquire any rights to Our Content beyond the limited, revocable permission in the previous sentence.

Your Content. You may have the opportunity to transmit content or materials in or through our Services or Platform (“**Your Content**”, excluding Personal Data as defined in our **Privacy Notice**). You grant us a perpetual, irrevocable, royalty-free, worldwide, fully sublicensable, non-exclusive right and license to use and exploit Your Content in any manner and for any purpose.

Feedback. You may provide us feedback, suggestions, or ideas relating to our Services or Platform (“**Feedback**”). You represent and warrant that you have the right to provide us any Feedback that you provide. You agree that we will own all Feedback, and you hereby irrevocably assign all right, title, and interest in and to all Feedback to us.

Waiver of Moral Rights. You irrevocably waive and agree never to assert, to the greatest extent **permitted by law**, all of your **moral rights whatsoever** in your Feedback and Your Content, **including** any right to the **integrity** of any your Feedback and Your Content, any right to be **associated with** any your Feedback and Your Content, and any **right to restrict** or **prevent the modification** or use, of any of your Feedback or Your Content in any **way** whatsoever.

Other Content and Services. When using our Services or Platform, you may come across links to third party content, or you may have the opportunity to use third-party services in connection with our Services or Platform. We don’t control or endorse any third-party content or services and are not liable to you for third-party content or services in any way. Your use of third-party content or services may be subject to additional terms and conditions with third-party providers, and we are not part of those terms or conditions. For example, we use Google’s Places API to mitigate errors in

account address records during account creation, which may delay account creation and verification. Your use of Google's Places API during account creation is subject to Google's Terms of Service and Google's Privacy Policy. If any third-party terms and conditions conflict with these Terms, you agree that these Terms control.

10. Restrictions

You won't:

- use Our Content to engage in, pay for, or support any illegal, fraudulent, deceptive, or manipulative conduct, including illegal gambling activities, money-laundering, economic sanctions violations or terrorist activities,
- use Our Content in any way or for any purpose that infringes, misappropriates, or otherwise violates any intellectual property rights or other rights of us or any third party, or applicable local, provincial, or federal law or regulation, or that is prohibited by these Terms,
- remove, delete, alter, or obscure any trademarks, specifications, warranties, or disclaimers, or any intellectual property or proprietary rights notices from Our Content,
- use, export, reexport or transfer any of Our Content for any purpose prohibited by Canadian or local export or import control laws and regulations,
- copy, modify, disassemble, decompile, or reverse engineer Our Content (except to the extent such restrictions are prohibited by applicable law),
- use (except as expressly permitted in these Terms), license, sublicense, sell, resell, transfer, assign, distribute or otherwise commercially exploit or make available to any third party Our Content in any way,
- take any action or use Our Content in any manner that could damage, destroy, disrupt, disable, impair, overburden, or otherwise impede or harm in any manner Our Content, or interfere with any other party's use of Our Content,
- disrupt, interfere with, violate the security of, or attempt to gain unauthorized access to Our Content or any computer network,
- bypass, breach, avoid, remove, deactivate, impair, descramble, or otherwise circumvent any security device, protection, or technological measure implemented by us or any of our service providers to protect Our Content,
- use any device, software, or routine that interferes with the function of Our Content or transmit in or through Our Content, or use in connection with Our Content, any virus, trojan horse, worm, backdoor, time bomb, malware, or other software or hardware devices designed to permit unauthorized access to, or disable, erase, or otherwise harm, any computer, systems, or software,

- access or use Our Content to build or support products or services competitive to our products or services,
- use any web scraping, web harvesting, or data extraction methods to extract any data from Our Content,
- create, use, operate, or employ any bots, robots, parsers, spiders, scripts, programs, routines, or any other forms of automation to engage in any activity on Our Content,
- develop any third-party applications that interact with Our Content without our prior written consent,
- use or attempt to use another user's Account without authorization,
- use or attempt to use Our Content for any person other than yourself,
- allow access to your Account to any person other than yourself,
- provide false, inaccurate, or misleading information in connection with your use of or access to Our Content, or
- encourage, permit, or enable any other person or entity to do any of the foregoing.

In addition, not all of our Services are available on every Platform or in every location. You won't attempt to access any Services that are unavailable in your location.

11. Risks

There are substantial risks associated with using our Services, including conducting Trades. You should carefully consider whether using our Services is suitable for you in light of your circumstances, knowledge, and financial resources. These risks can be found on our **Legal Disclosures** page, which is incorporated into these Terms by reference, however the list of risks is not complete and cannot list all risks associated with your use of the Services.

You acknowledge and agree that your access to and use of the Services, including conducting Trades, is at your own risk, and that we are not liable to you for any losses you incur arising from such risks.

12. Disclaimer of Warranties

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, OUR SERVICES AND PLATFORMS ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS. WE AND OUR AFFILIATES EXPRESSLY DISCLAIM ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS OR IMPLIED, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT RELATING TO OUR SERVICES AND PLATFORMS. WITHOUT LIMITING THE

FOREGOING, WE DISCLAIM THAT OUR SERVICES OR PLATFORMS WILL BE AVAILABLE, ACCURATE, SECURE, USEFUL, UNINTERRUPTED OR ERROR-FREE; THAT DEFECTS WITH OUR SERVICES OR PLATFORMS CAN OR WILL BE CORRECTED, OR THAT THE SERVERS THAT MAKE THEM AVAILABLE ARE FREE FROM VIRUSES OR OTHER HARMFUL COMPONENTS. WE DO NOT PROVIDE ANY UPTIME GUARANTEES, AND WE MAY DISCONTINUE MAKING OUR SERVICES OR PLATFORMS AVAILABLE TO YOU AT ANY TIME AT OUR SOLE DISCRETION.

13. Limitations on Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, NEITHER WE, OUR AFFILIATES, NOR OUR OR OUR AFFILIATES' OFFICERS, DIRECTORS, MEMBERS, EMPLOYEES OR AGENTS WILL BE LIABLE WITH RESPECT TO ANY CLAIM, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), OR OTHERWISE, RELATED IN ANY WAY TO THESE TERMS, OUR SERVICES OR OUR PLATFORMS FOR (1) ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR EXEMPLARY DAMAGES, INCLUDING DAMAGES FOR LOSS OF PROFITS, GOODWILL, USE, OR DATA AND (2) TO THE EXTENT NOT ALREADY EXCLUDED, ANY AMOUNTS EXCEEDING \$100 CANADIAN DOLLARS.

14. Indemnification

You agree to defend, indemnify, and hold harmless us, our affiliates, and our or our affiliates' officers, directors, members, employees, and agents, from any claim, demand, action, damage, loss, cost, or expense (including reasonable attorneys' fees) relating to (1) your use of our Services or Platform, (2) your violation of these Terms, (3) your infringement, misappropriation, or violation of the rights of any other person or entity, (4) any content, materials, or information (in any form or medium) that you submit, post, upload, provide, contribute, or make available (or authorize or instruct us to do so) through the Services or Platform, and (5) any Feedback. If you are obligated to indemnify us, we have the right to control any action if we want and you cannot settle any action without our consent, unless the settlement is only for money damages which you entirely pay.

15. Dispute Resolution; Applicable Law

You and Kraken agree to notify each other in writing of any dispute arising from, connected with, or relating to these Terms or your use of the Services within 30 days of when it arises. Notice to Kraken must be sent to legal@kraken.com. You and Kraken further agree to attempt informal resolution prior to any formal demand or legal proceeding.

Kraken is a member of the Ombudsman for Banking Services and Investment (OBSI). For any disputes or matters arising from, connected with, or relating to these Terms or your use of the Services that is not resolved informally via the process described above, you have access to the OBSI dispute resolution mechanism at no cost for claims up to \$350,000 CAD, subject to the complaint process described in National Instrument 31-103. For all claims, whether or not the dispute is subject to the OBSI-resolution process, you submit to exclusive jurisdiction by the provincial and federal courts located in the City of Toronto, Ontario, and to the laws of the Province of Ontario and applicable Canadian law, without giving effect to any conflict of laws principles that may provide for the application of the law of another jurisdiction. Whether the dispute is heard by OBSI or in court or in any other venue, you and Kraken will not commence against the other a class action, class arbitration or representative action or proceeding.

16. Suspension; Termination; Discontinuance

We can, at any time and without liability or prior notice to you:

- modify or discontinue our Services or Platform (or any parts of them),
- suspend, restrict, or terminate your access to our Services or Platform,
- suspend, restrict, or delete your Account, any information related to your account, or any content you post to the Services or Platform, or
- reject any Deposit, Withdrawal, Trade, or other transaction or use of the Service.

If we terminate your Account, we will contact you to return any Digital Assets in your Account to you and/or will instruct any Designated Financial Institution to Redeem your Fiat Balances, except in each case if you owe us any Fees or if we believe you have committed fraud, negligence, or other misconduct. If you are inactive for a protracted period and we are unable to return any Digital Assets or Redeem Fiat Balances in your Account to your designated Financial Account, then we may be required to report and remit such Digital Assets and Fiat Balances in accordance with any applicable provincial unclaimed property laws. Provincial unclaimed property law may require liquidation of the Digital Assets held in your Account.

17. Legal Disclosures

We are required by law to make certain disclosures in connection with our Services and Platform. These legal disclosures can be found on our **Legal Disclosures** page, which is incorporated into these Terms by reference. Certain legal disclosures may be jurisdiction-specific. You acknowledge that you have read, understand, and agree to the legal disclosures applicable to you.

We maintain licenses and registrations in certain jurisdictions to provide you our Services. These licenses or registrations may impact our provision and your use of our Services depending on where you live or are domiciled. Our **Legal Disclosures** page contains information on such licenses (or lack thereof) to the extent required by certain jurisdictions.

18. Personal Data

Please read our **Privacy Notice** for information about how we collect, use, and share your personal information. Our Privacy Notice is incorporated into these Terms by reference.

19. Notices

You agree that we may electronically provide you all communications, agreements, documents, receipts, notices, tax forms, and disclosures ("**Communications**") in connection with your Account or use of our Services. You agree that we may provide Communications to you by posting them on our Services or Platform, by emailing them to you at the email address you provide, or by sending an

SMS or text message to a mobile phone number that you provide. Your carrier's normal messaging, data, and other rates and fees may apply to any mobile Communications you should retain copies of all Communications for your records.

To access and retain electronic Communications, you will need a computer with an Internet connection that has a current web browser with cookies enabled and sufficient storage space, 128-bit encryption, and a current and valid email address and mobile phone number on file with us. For certain Communications, such as tax forms we will need to send to you, you will also need software to view PDF files.

You may withdraw your consent to receive electronic Communications by sending a withdrawal notice to <https://support.kraken.com>. If you do, we may suspend or terminate your use of our Services. Any withdrawal of consent to receive electronic Communications will act as your affirmation that your street address on file with us is current, and any Communications we are required to provide to you may be sent in paper form to that physical address.

If you would like a paper copy of any Communication, you may request one within 30 days after we provided it to you electronically by contacting our support at <https://support.kraken.com>. For us to send paper copies to you, you must have a current street address on file with us. Any request for a paper copy of a Communication is limited to that individual piece of Communication and won't affect your consent to receive all other Communications electronically. We may charge you fees for any paper copies of Communications.

You are solely responsible for keeping your email address, mobile phone number, and street address on file with us up to date. You can update your email address, mobile phone number or street address at any time by logging into your Account or by sending such information to <https://support.kraken.com>. If we send you a Communication but you don't receive it because such information is incorrect, our ability to contact you at the email address or mobile phone number is blocked by your service provider, or you are otherwise unable to receive electronic Communications, we will be deemed to have provided the Communication to you whether or not you actually received it. If you use a spam filter that blocks or reroutes emails, you must add us to your email address book so that you can receive Communications.

If your email address or mobile phone number becomes invalid such that electronic Communications sent to you by us are returned, we may deem your account to be inactive, and you may not be able to use our Services until we receive a valid, working email address or mobile phone number from you.

20. General

Force Majeure

We are not responsible or liable for any error, delay, loss, or damage arising from any event beyond our reasonable control (each, a "**Force Majeure Event**"). Force Majeure Events include flood, extraordinary weather conditions, earthquake, or other act of God, fire, war, insurrection, riot, labor dispute, accident, action of government, communications, power failure, or equipment or software malfunction.

Waiver

If we don't exercise a right under these Terms, we are not waiving such rights.

Enforceability

If any provision of these Terms is invalid or unenforceable, such provision will be deemed severed from these Terms, but such invalidity or unenforceability won't affect any other part of these Terms and the rest of these Terms will remain in full force and effect; provided, however, that if any such invalid or unenforceable provision can be modified so as to be valid and enforceable as a matter of law, then such provision is not deemed severed from these Terms and instead is deemed to have been modified so as to be valid and enforceable to the maximum extent permitted by law.

Assignment

You cannot assign or transfer any right or obligation under these Terms without our prior written consent. We can assign or transfer any right or obligation under these Terms, in whole or in part, without your consent, subject to compliance with applicable securities law. In addition, if we are acquired by or merged with a third party entity, we reserve the right to transfer or assign the information we've collected from you as part of such merger, acquisition, sale, or other change of control.

Interpretation

In these Terms, (1) "or" is inclusive, (2) "including" or "such as" are not words of limitation, (3) headings are only for your convenience, (4) unless otherwise indicated, a section reference in the main body of these Terms is a reference to a section in the main body of these Terms, (5) unless otherwise indicated, a section reference in an Annex is a reference to a section in such Annex, and (6) the "Summary of Kraken.com Canadian Terms of Service" and any definitions provided only for informational purposes are provided only for your convenience, is not legally binding, and does not affect the interpretation of these Terms,.

Relationship

We don't provide investment or tax advice, including in connection with your use of the Services. You agree not to rely upon any statement or content on our Services or Platform, or that is otherwise attributed to us, as a recommendation, advice, or guidance regarding trades, investments, tax, or any other similar issues. We also are not acting as your bank, broker, intermediary, agent, advisor, or as your fiduciary in any capacity, including with respect to the Services.

Nothing in these Terms will be deemed to or is intended to be deemed to, nor will it, cause you and us to be treated as partners, joint venturers, or otherwise as joint associates for profit.

Survival

If these Terms expire or terminate, the following Sections will remain fully binding upon you and us: 1, 2, 5, 7, 9, 10, 11, 12, 13, 14, 15, 17, 18 and 19, each in its entirety. Termination won't limit any of our rights or remedies at law or equity.

Entire Agreement

These Terms are the entire agreement between you and us, and supersede all prior and contemporaneous understandings between you and us about our Services and Platform. These Terms include all applicable Annexes hereto.

21. Definitions

In addition to the capitalized terms defined throughout these Terms, the following terms have the following meanings:

“Account” has the meaning set forth in Section 1. For your information, that section defines “Account” as an account you create with us.

“Authentication Methods” means the devices, accounts (including e-mail), credentials, and authenticator(s) used to access your Wallet under Annex E (Wallet Access).

“Communications” has the meaning set forth in Section 19. For your information, that section defines “Communications” as communications, agreements, documents, receipts, notices, tax forms, and disclosures that we may provide to you.

“Conditions” has the meaning set forth in Section 2. For your information, that section defines “Conditions” as certain minimum conditions you must meet to use any of our Services or to create an Account.

“Crypto Custodian” means Anchorage Digital Bank, a custodian that we have designated to custody Digital Assets that you hold in your Account for use in connection with any of our Services in accordance with regulatory requirements. Payward will hold crypto assets for you with the Crypto Custodian in a designated trust account.

“DeFi” means decentralized finance.

“Deposit” has the meaning set forth in Section 3. For your information, that section defines “Deposit” as to deposit Digital Assets into your Account.

“Designated Financial Institution” means a financial institution that we have designated to custody Fiat Currency that you hold in your Account for use in connection with any of our Services.

“Digital Asset” means any digital currency or other digital asset that is available in connection with our Services.

“Downstream Protocols” means an additional Protocol into which a Protocol may deploy your Digital Assets under Annex E (Wallet Access).

“Feedback” has the meaning set forth in Section 9. For your information, that section defines “Feedback” as feedback, suggestions, or ideas that you provide us relating to our Services or Platform.

“Fees” has the meaning set forth in Section 7. For your information, that section defines “Fees” as all applicable fees associated with your use of the Services.

“Fiat Balance” means the value of Fiat Currency reflected in your Account which has been deposited in a Designated Financial Institution and reconciled periodically based on your use of the Services and applicable Fees.

“Fiat Currency” means government-issued currency that is not backed by a commodity, including but not limited to Canadian Dollars, U.S. Dollars, and Euro, and that is available in connection with our Services.

“Financial Account” has the meaning set forth in Section 3. For your information, that section defines “Financial Account” as a financial account or wallet maintained outside the Services, of which you are the actual or beneficial owner.

“Force Majeure Event” has the meaning set forth in Section 20. For your information, that section defines a “Force Majeure Event” as an event beyond our reasonable control.

“Issue” or **“Issuance”** has the meaning set forth in Section 2. For your information, that section defines “Issuance” as being issued a Fiat Balance in your Account after deposit of Fiat Currency with a Designated Financial Institution.

“Order” has the meaning set forth in Section 4. For your information, that section defines “Order” as an order you submit through our Services.

“Order Type” has the meaning set forth in Section 4. For your information, that section defines an “Order Type” as one of the various types of Orders that our Services may permit you to make.

“Our Content” has the meaning set forth in Section 9. For your information, that section defines “Our Content” as collectively (1) our Services and Platform, (2) all content, materials, software, and trademarks found on them, (3) the selection and arrangement of them, and (4) all intellectual property rights in them.

“Platform” has the meaning set forth in the preamble to these Terms. For your information, the preamble defines “Platform” as our websites (including **kraken.com** and **pro.kraken.com**), and mobile applications through which you access our Services.

“Protocol” means an automated, non-custodial smart-contract system on a blockchain operated by Third-Party Providers into which you may elect to move your Digital Assets under Annex E (Wallet Access).

“Redeem” or **“Redemption”** has the meaning set forth in Section 3. For your information, that section defines “Redeem” or “Redemption” as redeeming a Fiat Balance into a Fiat Currency deposited into a Financial Account approved by us.

“Services” has the meaning set forth in the preamble to these Terms. For your information, the preamble defines “Services” as our services, as well as the services set forth in Annexes hereto.

“Staking Tokens” means receipt tokens that allow users to directly participate in staking.

“TEE” means trusted execution environment, which is a cloud-based secure area that enables the creation and caching of private keys, used to authorise on-chain transactions initiated by you.

“Terms” has the meaning set forth in the preamble to these Terms. For your information, the preamble defines “Terms” as these Canadian Terms of Service, including all Annexes hereto.

“Third-Party Provider” means any person or entity that builds or operates a Protocol, blockchain network, wallet infrastructure component, TEE provider, relay, paymaster, data source, or other service accessible through the Wallet Access Service under Annex E (Wallet Access).

“Trade” has the meaning set forth in Section 4. For your information, that section defines “Trade” as a trade, through your Account, of any of the following (1) a certain Digital Asset for another Digital Asset, (2) a certain Digital Asset for a certain Fiat Currency, or (3) a certain Fiat Currency for a certain Digital Asset, or (4) a certain Fiat Currency for a certain other Fiat Currency.

“Unsecured Deposit Hold” has the meaning set forth in Section 2. For your information, that section defines “Unsecured Deposit Hold” as an amount of funds in your Account sufficient to cover, at a 1:1 ratio, any payments using a money transfer from your Financial Account (e.g. a SWIFT or Interac e-Transfer) or credit card for 120 days post deposit.

“Wallet” means a self-custodied on-chain wallet that you set up and control under Annex E (Wallet Access). The Wallet is separate from your Account balance(s).

“Wallet Access Service” means our provision of user interfaces, connectivity and related tooling that allow you to manage your Wallet under Annex E (Wallet Access).

“we”, “us”, “our”, “Kraken”, or “Payward” have the meanings set forth in the preamble to these Terms. See the preamble for more information.

“Withdraw” or “Withdrawal” has the meaning set forth in Section 3. For your information, that section defines “Withdraw” or “Withdrawal” as your transfer of Digital Assets from your Account to a Financial Account approved by us.

“You” has the meaning set forth in the preamble. For your information, the preamble defines “you” as the individual, or entity acting through an authorized individual, who is bound by these Terms of Service.

“Your Content” has the meaning set forth in Section 9. For your information, that section defines “your Content” as content and materials you transmit in or through our Services or Platform, excluding Personal Data as defined in our **Privacy Notice**.

ANNEX A

Kraken Pay

This Annex A (this **“Kraken Pay Annex”**) incorporates by reference and supplements the Kraken.com Terms of Service (excluding all Annexes thereto, **“Terms”**) as if the entirety of the Terms were set forth in this Kraken Pay Annex. Capitalized terms used but not defined in this Kraken Pay Annex have the meanings given to them elsewhere in the Terms. In the event of a conflict between the Terms and this Kraken Pay Annex, the terms of this Kraken Pay Annex will control solely to the extent of the conflict and solely with respect to the subject matter of this Kraken Pay Annex.

We may provide you the option to send or receive certain Digital Assets and/or Fiat Currency to or from other eligible Kraken users on the Platform (the “Kraken Pay Service”) for personal use, subject to these Terms and your fulfillment of all applicable eligibility criteria.

WE MAKE NO REPRESENTATION OR WARRANTY THAT THE Kraken Pay SERVICE IS APPROPRIATE FOR USE IN ALL LOCATIONS, OR THAT THE TRANSACTIONS AND SERVICES DESCRIBED HEREIN ARE AVAILABLE OR APPROPRIATE FOR ENTRY INTO OR USE IN ALL JURISDICTIONS OR BY ALL PARTIES. YOU SHOULD INFORM YOURSELF AS TO THE LEGAL REQUIREMENTS AND TAX CONSEQUENCES OF USING THE Kraken Pay SERVICE WITHIN ALL JURISDICTIONS APPLICABLE TO YOU. WE ARE NOT RESPONSIBLE FOR TAX CONSEQUENCES TO YOU OF PARTICIPATING IN THE Kraken Pay SERVICE.

Eligibility

You may only use the Kraken Pay Service if (i) you fulfill the eligibility criteria of the Terms and (ii) your use of the Kraken Pay Service is not prohibited by applicable laws or regulations of the jurisdiction of your residence. You may only use the Kraken Pay Service for personal use and transfers to third parties may not be to any provider or merchant for goods, services, rents, or royalties. We reserve the right to impose additional eligibility criteria on your use of the Kraken Pay Service.

The Kraken Pay Service will only be offered in select jurisdictions at Kraken’s sole discretion and is subject to change or discontinuation at any time. Please note that in some jurisdictions the Kraken Pay Service may be available for Digital Asset transfers only.

Sending Digital Assets and/or Fiat Currency Using the Kraken Pay Service

Initiating a Kraken Payment

To initiate a transfer of Digital Assets or Fiat Currency through the Kraken Pay Service (a “Kraken Payment”), you (the “Sender”) may provide instructions to Kraken by designating (i) the type and amount of Digital Asset or Fiat Currency in your account that you wish to transfer, and (ii) the intended recipient of the transfer (the “Kraken Pay Instructions”). By submitting the Kraken Pay Instructions and confirming the transaction, you authorize us to transfer the designated Digital Assets or Fiat Currency to the recipient you have selected.

Identifying Digital Assets or Fiat Currency for Kraken Payment

To initiate a Kraken Payment, you must select the amount and type of Digital Asset or Fiat Currency you wish to transfer. You agree to have sufficient Digital Assets and/or Fiat Currency in your account prior to submitting your Kraken Pay Instructions. If the Digital Assets and/or Fiat Currency in your account are insufficient to cover the amount required for us to complete the Kraken Payment, you may select alternative Digital Assets and/or Fiat Currency in your account to Trade for the desired amount and type of Digital Asset or Fiat Currency you wish to transfer, which will be subject to applicable fees for the Instant Buy/Sell service.

You may only send Digital Assets and/or Fiat Currency to a Recipient if the Digital Asset and/or Fiat Currency is also available in the Recipient’s jurisdiction. We may decide to add or remove assets from the list of eligible Digital Assets or Fiat Currency available in any jurisdiction, including those available for Kraken Pay, at any time at our sole discretion. Additionally, your use of the Kraken Pay Service is subject to certain limits (for example, in the magnitude and/or frequency of Kraken Pay you may initiate within a specified period), which may change at any time.

Identifying a Recipient

You may designate another Kraken user by entering the Kraktag or email (if enabled) associated with the recipient's Kraken account or by selecting the "Paylinks" feature, described below. You may only initiate a Kraken Payment to a Kraken account user who is eligible to use the Kraken Pay Service. If you select Paylinks as your recipient, a payment link ("Paylink") will be generated, which you may share with the intended recipient through your own chosen communication method. Once a Paylink has been generated, the Digital Assets and/or Fiat Currency you have selected for transfer will no longer be available in your account. While a recipient of the Paylink does not need a Kraken account to receive the Paylink, the recipient must create a Kraken account, pass identity verification, and otherwise be eligible to use the Kraken Pay Service in order to claim the Digital Assets or Fiat Currency you have designated for transfer through the Paylink.

A Paylink may only be redeemed once and expires after 14 days. If after 14 days the designated Digital Assets or Fiat Currency have not been successfully claimed through the Paylink, the Digital Assets or Fiat Currency will be returned to your account.

You are responsible for ensuring that the Paylink is sent to the intended recipient. Kraken does not verify the identity of the intended recipient and shall bear no liability or responsibility in the event an individual other than the intended recipient claims the Digital Assets or Fiat Currency sent via the Paylinks feature.

Kraken Payment Timing

You understand and agree that when you submit Kraken Pay Instructions and confirm the transaction, we will begin processing the transfer instruction immediately and the designated Digital Assets or Fiat Currency may leave your account as soon as you confirm the transaction. Title to any Digital Assets or Fiat Currency you send through the Kraken Pay Service will be transferred to the Recipient immediately following a successful transfer.

You should verify all transaction information prior to submitting Kraken Pay Instructions as the transfer may not be canceled or reversed once it is processed unless we decide at our sole discretion that the transaction should be canceled or reversed and we have the technical capability to effect such a cancellation or reversal. You acknowledge that you are responsible for ensuring the accuracy of any Kraken Pay Instructions submitted to us and that any errors may result in the irreversible loss of your Digital Assets and/or Fiat Currency.

Pending Kraken Payments

Kraken Payments you initiate may have a "Pending" status displayed in your account ("Pending Kraken Payments"). These Pending Kraken Payments may remain in pending status for a certain period of time depending on various factors. The Pending Kraken Payments will either fail due to various reasons or eventually become a successful Kraken Payment.

Failed Kraken Payments

Kraken Payments may fail for a number of reasons. In the case of a failed Kraken Payment, you will be notified, and you may be able to reinitiate a Kraken Payment by submitting new Kraken Pay Instructions as outlined above. In the case of a failed Kraken Payment, the Digital Assets and/or Fiat Currency designated for transfer will remain in your account, and the Digital Assets and/or Fiat Currency will not be transferred to the Recipient.

Cancellation of Kraken Payments

All completed Kraken Payments are final and generally cannot be reversed. In some circumstances, you may have the opportunity to request cancellation of a Pending Kraken Payments, but we may

refuse any cancellation request at our sole discretion. If we fulfill such a cancellation request, that does not mean we will cancel future Kraken Payments in the same or similar circumstances. Additionally, we may cancel or refuse to process any pending Kraken Payments as required by law or any court or other authority to which Kraken is subject in any jurisdiction.

Fees

There are no fees for using the Kraken Pay Service. Please note, however, that when you initiate a transfer of Digital Assets, any Fiat Currency equivalent value displayed by our services is indicative only. The exchange rate between Fiat Currency and the Digital Asset indicated by our services may change between when you submit the Kraken Pay Instructions and when we execute those instructions. We are not liable for any fluctuations in the market value of the Digital Assets you designate for transfer.

Liability

You are solely responsible for your use of the Kraken Pay Service, and we make no representations, warranties, or guarantees that the Kraken Pay Services will function or perform in accordance with your expectations. You hereby acknowledge and agree that we disclaim and have no responsibility for any loss, liability, or damage you may incur, directly or indirectly, in connection with the Kraken Pay Services. You further agree that we shall not be liable for any delays in effectuating a Kraken Payment, or if we are unable to complete a Kraken Payment for any reason, including but not limited to, because of: (i) any direct or indirect actions taken by you, including providing inaccurate, or insufficient Kraken Pay Instructions, that result in a mistaken or accidental transfer; (ii) insufficient Digital Assets and/or Fiat Currency in your account to complete the transfer according to your Kraken Pay Instructions; (ii) any malfunction of the Kraken Pay Service due to circumstances beyond our control; or (iii) any suspension or discontinuance of the Kraken Pay Service.

Taxes

Sending or receiving Digital Assets may constitute a taxable transaction in certain situations. You alone are responsible for determining whether your use of the Kraken Pay Service is subject to tax and for reporting and remitting the correct taxes to the appropriate tax authorities. You agree that we have no responsibility or liability for determining whether a transaction is subject to tax and what taxes apply or for collecting, reporting, withholding, or remitting any taxes arising from Kraken Payments, unless otherwise required by law. Notwithstanding anything herein to the contrary, you acknowledge and accept that Kraken may have a legal obligation to make reports, and will make such reports as required, to the relevant tax authorities regarding Kraken Pay.

Payment service providers (“Channel Partners”) utilizing the Kraken Pay platform—for services including, but not limited to payroll, invoicing or contractor payment platforms, and merchant payment processors—are solely responsible for ensuring compliance with all applicable tax reporting and withholding obligations related to the payments they facilitate. Given their direct relationship with payment recipients and, in certain instances, their specific knowledge concerning the nature, purpose, or character of the payments, Channel Partners acknowledge and agree that they assume full responsibility for any required tax reporting and withholding.

Kraken shall have no responsibility or liability for tax reporting or withholding on transactions processed by Channel Partners, except where Kraken is expressly required to withhold or report under applicable law. In such cases, Kraken will perform the necessary withholding and reporting to the extent mandated.

By using the Kraken Pay platform, Channel Partners agree to indemnify and hold Kraken harmless from any claims, liabilities, penalties, or costs arising from their failure to comply with applicable tax reporting and withholding obligations.

If you have any questions about your tax obligations, please consult with a tax professional for advice.

ANNEX B

Kraken+ Subscription Plan

This Annex B (this “**Kraken+ Annex**”) incorporates by reference and supplements the Kraken.com Terms of Service (excluding all Annexes thereto, “**Terms**”) as if the entirety of the Terms were set forth in this Kraken+ Annex. Capitalized terms used but not defined in this Kraken+ Annex have the meanings given to them elsewhere in the Terms. In the event of a conflict between the Terms and this Kraken+ Annex, the terms of this Kraken+ Annex will control solely to the extent of the conflict and solely with respect to the subject matter of this Kraken+ Annex. This Kraken+ Annex, in addition to the Terms, sets forth the terms and conditions governing your Kraken+ subscription. You acknowledge and agree that the Terms are and remain entirely binding on you and to your Kraken+ subscription.

1. Kraken+ Subscription

Eligible users may subscribe to Kraken+, which is an automatically renewing subscription requiring recurring payments. Kraken+ subscribers get the following benefits while an active subscriber:

(a) Kraken Trading Fee Waiver

Kraken+ subscribers are eligible to receive a waiver of Instant Buy/Sell fees, provided that transactions are still subject to a spread that is included in the transaction price. All other Kraken fees (including Kraken Pro fees), funding provider fees, and credit card fees still apply. You can learn more about our fees at our [Fee Schedule](#). There may be a limit to the total amount of fees that will be waived. You can view any limit and the remaining amount of fees that will be waived under the “subscription management” tab of your account settings.

2. Kraken+ Fees and Billing

The Kraken+ subscription fee will be billed in advance at the start of your subscription and on an on-going basis the day immediately following the end of your prior subscription billing period unless and until you cancel your subscription, your account is otherwise suspended or terminated pursuant to the Agreement, or Kraken+ is suspended or terminated. The length of your billing period depends on the subscription plan you signed up for (e.g. monthly, annually where offered, or other), which you may view in the “subscription management” tab of account settings.

At this time, you may subscribe to Kraken+ on our website or in-app through the Apple App Store or Google Play Store. Price is inclusive of applicable taxes (i.e., VAT) where required. In other regions, the price shown does not include taxes, which will be added at the time of purchase where applicable. Depending on your billing zip code, relevant state or local taxes may be added to your subscription price. The amount you pay for Kraken+ may vary based on exchange rates or other considerations, and the price to be charged will be displayed before your purchase is finalized.

We reserve the right to change the terms of Kraken+ and your subscription, including the subscription fees, from time to time, effective as of the beginning of your next billing period following the date of the change. We will give you advance notice of any increased subscription fees, increased liability, or stricter limitations regarding your Kraken+ subscription at least twenty-one (21) days before the effective date of such change. We will give you advance notice of any change in the payment amount from the previous payment, and the date of the next payment, at least ten (10) calendar days in advance of the next payment by e-mail to your primary e-mail address saved in your Kraken account. If you do not wish to accept a change to the price of your subscription, you may cancel your subscription as described below.

1. Promotional Free Trials

Offers for a free trial or other promotional subscriptions to Kraken+ are subject to these Terms. Only one free trial or promotional subscription is available per user. Free trial or promotional eligibility is determined by Kraken at its sole discretion and we may limit such eligibility or duration to prevent abuse. Kraken may also limit the ability to combine a free trial, promotional subscription, or any other offers. For some trials or promotional subscriptions, you may be required to provide your payment details to start the free trial or promotional subscription. You will not receive a notice from Kraken that your free trial or promotional offer has ended. BY PROVIDING PAYMENT DETAILS YOU AGREE THAT AT THE END OF YOUR APPLICABLE FREE TRIAL OR PROMOTIONAL SUBSCRIPTION PERIOD, YOUR KRAKEN+ SUBSCRIPTION WILL AUTOMATICALLY RENEW AND YOU WILL BE CHARGED THE SUBSCRIPTION FEE STATED IN YOUR OFFER AT THE BEGINNING OF EACH BILLING CYCLE UNTIL YOU CANCEL YOUR SUBSCRIPTION. To avoid charges, you must cancel your free trial or promotional subscription as described below.

2. Cancellation

You may cancel your Kraken+ subscription at any time. Cancellation must be completed through the same platform where you originally subscribed prior to the end of your current subscription period to avoid future charges. If you cancel your subscription, the cancellation goes into effect at the end of your current subscription period. You will have continued access to your subscription for the remainder of your paid subscription period. When the cancellation goes into effect, you will no longer receive any benefits, including trading fee waivers or any other benefits of Kraken+. If you cancel, modify your subscription, or if your account is otherwise terminated under this Agreement, you will not receive a credit, including for partially used periods of the subscription service.

3. Cancellation by Kraken

Kraken reserves the right to accept, refuse, suspend, or cancel your subscription at any time in its sole discretion. If Kraken cancels your subscription, you will receive a refund of your subscription fee on a pro rata basis calculated from the end of the month during which your subscription was canceled, unless Kraken terminates your account or your subscription because it determines, in its sole discretion, that your actions or your use of our services violates the Terms.

4. Acknowledgement of Risk

By signing up for Kraken+, you understand that Kraken is not making a recommendation to make a specific investment, trade, or to use any specific investment strategy. Kraken does not provide any investment, legal, or tax advice.

Kraken Verify

This Annex C incorporates by reference and supplements the Kraken.com Terms of Service (excluding all Annexes thereto, the “**Terms**”) as if the entirety of the Terms were set forth in this Annex. Kraken Verify, a service offered by Kraken Continuance, Inc., a Cayman islands company, uses the Ethereum Attestation Service to allow you to issue verified, onchain credentials (each, an “**Attestation**”). Attestations may be used to establish your identity and reputation when interacting with certain decentralized applications onchain. An Attestation issued by you is stored onchain, and therefore is public and viewable by anyone indefinitely. If you do not wish to share this personal information with others by making it publicly available onchain, do not use Kraken Verify. Once an Attestation has been issued by you, a record of the Attestation may persist in the Ethereum Attestation Service even if the Attestation is revoked.

1. Eligibility. Kraken supports your use of Kraken Verify to attest to certain information related to your Kraken account. To do so, you must (a) have an identity-verified Kraken account, (b) be in good standing and eligible to transact on the Kraken platform and (c) have executed at least one trade. We may refuse to allow you to use Kraken Verify to attest to information related to your Kraken account if (a) the information you provided to create a Kraken account (as described in the “Issuance” section below) is incomplete, inaccurate, or incorrect, (b) if you violate the Terms, violate applicable law, or engage in behavior that harms our services (for example, by engaging in fraudulent activity or attempting to circumvent the Terms or our policies), or (c) if your Kraken account is subject to any type of limitation or review. In order to use an Attestation on a third party platform, you must comply with the terms of the applicable third party platform. We may refuse to allow you to use Kraken Verify due to any violation by you of the third party platform’s terms of use. Without limiting the foregoing, we reserve the right, in our discretion, to limit or restrict your use of Kraken Verify or ability to issue an Attestation.

2. Issuance. By using Kraken Verify to issue an Attestation, you acknowledge that some or all of the information you provide to us, including the information you provided when you created your Kraken account and information we collect in accordance with our Privacy Policy from your usage of our services, may be used to issue one or more Attestations.

If you choose to issue an Attestation, you acknowledge that information related to your Kraken account will be stored onchain, and therefore will be public and viewable by anyone.

You agree that all the information you provide in order to issue an Attestation is complete, accurate and correct. An Attestation relies on the completeness, accuracy and correctness of information provided by you, which you are ultimately responsible for. Kraken will assume for all intents and purposes that you own and control the private keys associated with the self-hosted wallet that you specify for receipt of any Attestation issued to you, including for purposes of any tax reporting obligations that Kraken may become subject to as a result of any reward or other value that is distributed to such self-hosted wallet in connection with such Attestation. By using Kraken Verify, you further agree that you will not transfer the Attestation to any third party.

An Attestation may also be based on data supplied to us by third parties, including government agencies, third party suppliers of identity verification services and others. Those third parties may change or may, due to change in laws or other reasons, change their policies or services. Therefore, we may be required to amend the provision and scope of any Attestation, and may do so at any time at our discretion without notice.

ANNEX D

Stablecoin Rewards Program

This Annex D (this “**Stablecoin Rewards Program Annex**”) incorporates by reference and supplements the [Kraken.com Canadian Terms of Service](#) (excluding all Annexes thereto, “**Terms**”) as if the entirety of the Terms were set forth in this Stablecoin Rewards Program Annex. Capitalized terms used but not defined in this Stablecoin Rewards Program Annex have the meanings given to them elsewhere in the Terms. In the event of a conflict between the Terms and this Stablecoin Rewards Program Annex, the terms of this Stablecoin Rewards Program Annex will control solely to the extent of the conflict and solely with respect to the subject matter of this Stablecoin Rewards Program Annex.

Kraken provides you rewards on your Stablecoin account balances (the “Stablecoin Rewards Program”) subject to the terms and conditions of these Terms, including this Stablecoin Rewards Annex, and your fulfillment of all applicable eligibility criteria.

STABLECOINS ARE NOT LEGAL TENDER. KRAKEN IS NOT A DEPOSITORY INSTITUTION, AND YOUR STABLECOIN BALANCE IS NOT A DEPOSIT ACCOUNT. KRAKEN HAS NO RIGHT TO USE ANY STABLECOINS IN YOUR ACCOUNT UNLESS SPECIFICALLY INSTRUCTED BY YOU.

Eligibility

If you are [eligible](#), you will automatically earn in-kind amounts of the stablecoin balance (“Stablecoin **Rewards**”) in your Kraken account. Such accrued Stablecoin Rewards will be distributed as described below. If at any time you are deemed [ineligible](#), your enrollment in the Stablecoin Rewards Program will be paused and you will cease to earn any Stablecoin Rewards. You can opt-out of, or back into, Stablecoin Rewards at any time by following the instructions [here](#). If you close your Kraken account, you will forfeit the rewards you have accrued (that are not yet distributed for the current calendar week) up to that time.

Rewards

Stablecoin Rewards will be determined by Kraken in our sole discretion, are not guaranteed, and the rates and timing of Stablecoin Rewards may vary. Such rates have no relationship to and may not be competitive with benchmark interest rates observed in the market for bank deposit accounts.

We may impose limits on the specific stablecoins and/or maximum amount of any or all stablecoins eligible for rewards. The current limit may be found [here](#).

Stablecoin Rewards, if any, will be paid to you by Kraken, and will be subject to tax withholding and reporting as required by applicable law.

Stablecoin Rewards are earned in-kind at the then current Stablecoin Rewards Rates. “Stablecoin Rewards Rates” means the annual rate of rewards earned on each particular stablecoin in your account, which does not reflect compounding. Our current USDG Rewards Rate can be found [here](#).

Any Stablecoin Rewards earned will be credited to your Kraken account balance on the payout day on a weekly basis. Stablecoin Rewards below five decimal places will only display on exported ledger history described at <https://support.kraken.com/articles/stablecoin-rewards>, as may be updated by us from time to time in our sole discretion.

If you withdraw your stablecoins from your Kraken account, you will no longer receive Stablecoin Rewards. Stablecoins do not, on their own, generate any interest or returns for their holders.

Not an Investment

You acknowledge and agree that stablecoins are a means of payment and a store of value. Stablecoins are not an investment. The reserve assets held by stablecoin issuers do not generate any interest or return for the stablecoin holders. You do not expect that any stablecoins you hold will appreciate in value.

You have had the opportunity to review the crypto asset statement for the particular stablecoin, which can be found [here](#), and the e terms and conditions regarding the crypto asset on the issuer's website, a link to which is included in the crypto asset statement.

Changes

We reserve the right to add, change, or delete any provision of these terms and to terminate the Stablecoin Rewards Program, or your participation in the program, at any time upon notice made in the same manner.

ANNEX E

Wallet Access Terms

This Annex E incorporates by reference and supplements the Kraken.com Canadian Terms of Service (excluding all Annexes thereto, the "Terms") as if the entirety of the Terms were set forth in this Annex. This Annex describes an optional, non-custodial technology service provided by Payward Wallet LLC ("**PWLLC**", "**we**", "**us**"). This service does not constitute an investment service or any other regulated activity. Nothing in this Part is, or should be treated as, an invitation or inducement to engage in any investment activity. This Annex supplements the Terms and applies where you choose to use the Wallet Access Service or any connected features. If there is any conflict between the Terms and this Annex, this Annex prevails to the extent of the conflict for the Wallet Access Service only.

1. The Wallet Access Service.

- a. The Wallet Access Service is a software which provides a user interface for you to: create a self-custodied on-chain wallet that you set up and control ("**Wallet**"); view and initiate transactions using that Wallet (including moving Digital Assets from your Account to your Wallet and from your Wallet to your Account); and [view](#), through the Wallet interface, certain blockchain data or information relating to Digital Assets and your interactions with automated, non-custodial smart-contract systems on a blockchain into which you may elect to move your Digital Assets ("**Protocols**"), as sourced directly from on-chain records or any person or entity that builds or operates a Protocol, blockchain network, wallet infrastructure component, trusted execution environment provider, relay, paymaster, data source, or other service accessible through the Wallet Access Service (any of them, "**Third-Party Providers**").

- b. In providing the Wallet Access Service to you, we do not: take possession of, exercise control over, or have access to, your Wallet, or the means of access to it; store, control, or have access to, your private keys; provide investment, legal, tax or financial advice; recommend, endorse, operate, or manage any Protocol; guarantee any yield, return or airdrop; or intermediate, batch or net your transactions as agent or principal. All Protocols accessible via the Wallet Access Service are operated by independent Third-Party Providers. They are not controlled or operated by us.

2. Use of the Wallet

- a. **On-Chain Interactions.** You may use your Wallet to initiate and sign on-chain transactions that interact directly with Protocols. Each transaction is executed on-chain under your sole control using your private keys and we have no ability to initiate, or exercise control over, any such transactions or your private keys.
- b. **Transfers to Protocols.** As a result of such transactions, you may transfer Digital Assets from your Wallet to a Protocol to access that Protocol's functionality, such as lending, staking, liquidity provision, or other decentralized activities. Any Digital Assets transferred in this way are no longer held in your Wallet and become subject solely to the relevant Protocol's terms and smart contract logic. The timeliness or availability of such transfers may vary depending on on-chain conditions or the Protocol's own terms or smart contract logic. We have no control over any such Protocols, their functionalities or transactions interacting with such Protocols and we are not liable for any delays, restrictions, errors, or failures related to transfers of Digital Assets from your Wallet to a Protocol.
- c. **Asset Conversions (to Protocols).** Following a transfer to a Protocol, you acknowledge that the selected Protocol or its associated smart contracts may automatically convert, wrap, or otherwise transform the transferred Digital Assets into another type of Digital Asset required by the Protocol to perform its functions. Such conversions occur on-chain, under the control of the relevant smart contracts or Protocol, and outside PWLLC's control or responsibility.
- d. **Downstream Protocols.** Following a transfer of Digital Assets from your Wallet to a Protocol, that Protocol may, in accordance with its own smart contract logic, terms, or governance, deploy, lend, stake, or otherwise transfer those Digital Assets to or through one or more additional Protocols ("**Downstream Protocols**"). You acknowledge and agree that:
 - i. Such further transfers or deployments occur automatically on-chain under the control of the relevant Protocol or its smart contracts, and we have no control over such further transfers or deployments;
 - ii. We do not select, approve, recommend, endorse, or monitor any Downstream Protocols and we have no control over how your Digital Assets are used once they leave your Account;
 - iii. Each Downstream Protocol is operated by independent Third-Party Providers, and the performance, security, or redemption of assets within them are solely governed by their respective terms and code and we have no control over such Downstream Protocols; and
 - iv. We are not responsible or liable for any act, omission, malfunction, failure, loss, or unavailability of any Protocol to which you transfer your Digital Assets, or any

Downstream Protocols to which those Digital Assets may subsequently be deployed.

- e. **Protocol and Downstream Protocol Risks.** Where a Protocol or any Downstream Protocol lends, stakes, transfers, or otherwise deals with Digital Assets in accordance with its own terms, governance, code, or smart contract logic, there is a risk that those Digital Assets may be lost, become inaccessible, or depreciate in value. Such risks may arise, for example, where:
- i. Digital Assets are deployed into liquidity pools, lending pools, or similar mechanisms that are subsequently liquidated, under-collateralised, exploited, or otherwise fail;
 - ii. The Protocol or Downstream Protocol incurs bad debt, experiences a shortfall in collateral, experiences liquidity constraints, or socialises losses among participants; or
 - iii. Market conditions, oracle failures, or governance actions cause adverse changes to pool parameters, redemption values, or reward structures.

You acknowledge that these events may reduce or eliminate the number or value of Digital Assets ultimately returned to you when you instruct a withdrawal or redemption from a Protocol. We are not liable for, nor do we guarantee, insure, or make you whole for any loss of Digital Assets or reduction in value resulting from the operation, performance, or failure of any Protocol or Downstream Protocol.

- f. **Receipt Tokens and Evidence of Position.** Following a transfer to a Protocol, your Wallet may receive receipt tokens, derivative tokens, or other digital representations evidencing your on-chain position or claim to Digital Assets deposited with, or managed by, that Protocol. These tokens are created, managed, and governed by the relevant Protocol or its community. We do not issue, custody, select, approve, recommend, or endorse any such tokens, or guarantee the value or redeemability of any such tokens.
- g. **Transfers from Protocols.** You may initiate a transfer of Digital Assets from a Protocol to your Wallet in accordance with that Protocol's functionality and terms. The timeliness or availability of such transfers may vary depending on Protocol liquidity, on-chain conditions, or the Protocol's own terms or smart contract logic. We have no control over, and are not liable for, any delays, restrictions, errors, or failures related to transfers of Digital Assets from a Protocol to your Wallet.
- h. **Asset Conversions (from Protocols).** When you transfer Digital Assets from a Protocol to your Wallet, the Protocol's terms and smart contract logic may dictate that the same type of Digital Assets you originally transferred to the Protocol are returned to you. This means that Digital Assets you initially transferred—if automatically converted, wrapped, or otherwise transformed by the Protocol or its associated smart contracts for compatibility—may be re-converted or un-wrapped to the original Digital Asset type when you initiate a withdrawal or transfer from the Protocol to your Wallet.
- i. **Display of Information.** The Wallet Access Service may display aggregated or summarized information about Digital Assets transferred to or from Protocols, including balances, yields, or receipt tokens associated with your Wallet. Such information is displayed for convenience and informational purposes only, on an as-is basis from blockchain or third party sources. We do not verify, audit, or guarantee data

obtained from third-party sources, and displayed information may not accurately reflect your actual on-chain positions or entitlements.

- j. **Protocol Returns and Performance.** You acknowledge that any returns, yields, or rewards stated to be generated or distributed by a Protocol are estimates only and are subject to the Protocol's own terms, governance decisions, and prevailing on-chain conditions. The actual returns you may receive from a Protocol may differ from any stated or estimated rate and may be zero. We do not guarantee any such returns and we are not liable for any failure by a Protocol to achieve or distribute any particular return or outcome.
- k. **Third Parties.** The creation, signing, and broadcasting of on-chain transactions may occur through Third-Party Providers, including blockchain networks, relays, and trusted execution environment infrastructure operators. We are not responsible for any failure, breach or downtime affecting such providers.

3. **TEE Functionality and User Control.** The Wallet is non-custodial. This means:

- a. Your private keys are generated and stored within a trusted execution environment ("TEE") either locally (e.g. on your device) or within a cloud-based TEE maintained by an independent TEE Provider. A TEE Provider forms part of the broader category of Third-Party Providers.
- b. We do not control, or have access to, your private keys, seed phrases, or Authentication Methods at any time. All cryptographic signing occurs locally within the TEE using the hardware of your device or a TEE environment controlled by a Third-Party Provider.
- c. Transactions are signed within the TEE and broadcast to the blockchain by you and we have no ability to initiate or execute any transactions from your Wallet on your behalf.
- d. You are solely responsible for:
 - i. maintaining control of the devices, accounts (including e-mail), credentials, and authenticator(s) used to access your Wallet (together, "**Authentication Methods**");
 - ii. ensuring that your device software, firmware, and security settings are current; and
 - iii. safeguarding any available encrypted backups or recovery materials.
- e. We may be unable to restore, recover, or recreate your private keys, cached data, or Wallet access, including if your Authentication Methods or the TEE environment are lost, corrupted, disabled, or otherwise unavailable.
- f. Loss of access to your Authentication Methods, or the corruption, disablement, or failure of the TEE, may result in permanent loss of your access to the Wallet and any Digital Assets associated with it.
- g. The ongoing operation of the Wallet depends on the availability and performance of the relevant TEE Provider, including its hardware, firmware, or other infrastructure. These are operated independently and are outside our control. Your use of these services may be subject to separate terms and privacy policies. We do not warrant or

guarantee the functionality, integrity, or continuity of any TEE Provider, device manufacturer, or related Third-Party Provider.

- h. Vulnerabilities, firmware revocations, manufacturer updates, or actions taken by a TEE Provider or device manufacturer may affect your ability to access or use the Wallet, and may result in the permanent loss of access to your Wallet and any Digital Assets associated with it. We are not responsible or liable for any delay, malfunction, outage, or data loss arising from such events.

By using the Wallet Access Service, you acknowledge and accept all risks associated with the TEE, including potential compromise, service disruption, manufacturer or provider failure, and the permanent loss of access to your Digital Assets.

4. Eligibility

- a. You must meet the eligibility criteria set out in Section 1 of these Terms (Eligibility). We may decline, restrict or withdraw access to the Wallet Access Service for legal, regulatory, or operational reasons.
- b. You must not:
 - i. use the Wallet or any connected Protocol for any activity prohibited or restricted under Section 10 of the Terms (Restrictions), or otherwise in any manner which breaches these Terms;
 - ii. circumvent geographic or sanctions controls; or
 - iii. engage in activity that is illegal in your jurisdiction.
- c. You are solely responsible for: safeguarding and recovering your Authentication Methods; ensuring the legality of your Protocol interactions; and maintaining appropriate security and backups of your Wallet and Authentication Methods.
- d. The Wallet Access Service and any displayed Protocol options may be added, changed, suspended, or removed at any time without notice. Removal of an option from our interface does not affect your on-chain positions.

5. Fees and Taxes

- a. You are responsible for all blockchain network (gas) fees and any Protocol-level fees incurred in connection with your transactions.
- b. A total fee of 25% of the rewards earned is deducted by the Protocols from the protocol rewards earned before they are credited to your Wallet.
- c. We may in the future introduce service fees for the Wallet Access Service. Any such fees will be disclosed before they apply.
- d. You are solely responsible for all taxes, including, but not limited to, income, capital gains, wealth, and any filing/reporting arising from your on-chain activity and Protocol interactions. We do not provide investment or tax advice, including in connection with your use of the services set forth herein. You agree not to rely upon any statement or content on our services or Platforms, or that is otherwise attributed to us, as a recommendation, advice, or guidance regarding trades, investments, tax, or any other similar issues. We also are not acting as your bank, broker, intermediary, agent, advisor,

or as your fiduciary in any capacity, including with respect to the services described herein.

- e. Notwithstanding anything herein to the contrary, you acknowledge and accept that Kraken may have a legal obligation to make reports, and will make such reports as required, to the relevant tax authorities regarding any services hereunder.

6. Third Party Protocols and Content

- a. Protocols (including any vaults or strategies) surfaced through the Wallet Access Service interface are automated, non-custodial smart contract functionality operated by independent Third-Party Providers. They are not financial instruments or investment services (including portfolio management or the operation of a collective investment undertaking) or any other regulated activity, and nothing shown in the Wallet interface is an invitation or inducement to invest. Neither PWLLC nor any Third-Party Provider guarantees performance, yield or outcomes, assumes any fiduciary, advisory or custodial duties, or should be relied upon for any financial decision or expectation of return.
- b. Display of a Protocol, vault, strategy, APY or similar data is for information only and does not constitute an endorsement, recommendation, or verification.
- c. When you interact with a Protocol, you enter into a direct relationship with its operators, DAO, or smart contracts. We are not a party to such relationships and we are not responsible for Protocol performance, code security, redemptions, or governance.

7. Controls and Compliance

- a. We may block interface access to certain Protocols, Digital Assets, or addresses to comply with legal or sanctions requirements. These measures do not enable us to seize or freeze Digital Assets in your Wallet or initiate any transactions from your Wallet.
- b. You must maintain reasonable security on your devices and install updates to any Wallet components surfaced in our interface. We do not warrant the security of any Third-Party Provider or TEE environment.

- 8. **Support** We may provide general information on setting up and using the Wallet Access Service. We will not be obliged to Protocol-level support, troubleshooting, or recovery for Wallets, third-party smart contracts, DAOs, or TEE environments.

9. Termination

- a. You may elect to terminate your access to the Wallet Access Service at any time and for whatever reason by contacting us through <https://support.kraken.com/hc/en-us/forms>. Where you do so, you may have the opportunity to port your Wallet. If you choose not to take up this opportunity, your Wallet and any associated Digital Assets contained within it, or transferred to any Protocols from it and in respect of which you may have rights, may be lost permanently. We may not be able to recover, restore, or recreate your Wallet or any associated Digital Assets once access is terminated, and we shall not be responsible for any resulting loss of access or value.
- b. We may suspend or terminate your access to the Wallet Access Service at any time and for whatever reason upon giving you two months' written notice via the contact details provided on your Account. You will need to ensure that you port your Wallet as soon as possible following your receipt of a notification of termination, and in any event

by no later than two months following the date of that notification. If you do not do so, your Wallet and any associated Digital Assets contained within it, or transferred to any Protocols from it and in respect of which you may have rights, may be lost permanently. We may not be able to recover, restore, or recreate your Wallet or any associated Digital Assets once access is terminated, and we shall not be responsible for any resulting loss of access or value.

- c. In addition to our termination rights under the section above, and without prejudice to any of our other rights or remedies under this Agreement or at law, we may immediately and without prior notice, suspend, cancel or terminate the provision of the Wallet Access Service to you: in any of the events set forth in section 4(b) of this Annex (Eligibility); If we are required by applicable law, regulation, sanction, or directive issued by a governmental, judicial or regulatory authority to do so; or If we otherwise feel it is necessary, in our reasonable opinion, in order to protect us, the Site or the Platform.
- d. Where we elect to terminate your access in accordance with section 9(b) of this Annex, we may give you the opportunity to port your Wallet, provided that doing so would not: breach, or risk breaching, any applicable law, regulation, sanction, or directive issued by a governmental, judicial or regulatory authority; or contravene any applicable security, anti-money-laundering, counter-terrorist-financing, or sanctions controls.
- e. If you choose not to take up this opportunity, your Wallet and any associated Digital Assets contained within it, or transferred to any Protocols from it and in respect of which you may have rights, may be lost permanently. We may not be able to recover, restore, or recreate your Wallet or any associated Digital Assets once access is terminated, and we shall not be responsible for any resulting loss of access or value.
- f. Termination of your access to the Wallet Access Service does not affect your ability to access your Wallet using compatible third-party tools where available, provided you have successfully ported your Wallet. Following termination, we will have no further visibility or control over, or responsibility for, your Wallet or any transactions executed through it.

10. Liability

- a. With respect to liability in contract, tort (including negligence), breach of statutory duty, breach of warranty or otherwise arising out of, or in connection with, this Agreement, you are solely responsible for your on-chain activity, wallet security, and risk assessment. We are not liable for any losses, delays, or outcomes resulting from your use of Protocols or Third-Party Providers.
- b. Our total aggregate liability to you in contract, in tort (including negligence), breach of statutory duty, breach of warranty or otherwise arising out of, or in connection with this Agreement or the Wallet Access Service shall not exceed the total service fees (if any) paid by you in the twelve (12) months preceding your first claim against us in connection with the Wallet Access Service. We shall not be liable for any indirect, special, incidental, or consequential damages, or any direct or indirect loss of profits, data, or access.
- c. You agree to indemnify, and hold harmless, us, our affiliates, and our and their directors, officers, employees, and agents against any claim or loss arising from your breach of these terms or misuse of the Wallet Access Service.

11. Risks Use of the Wallet Access Service and interaction with Protocols involves significant risks, including potential loss of Digital Assets. You should not use the Wallet Access Service or interact with Protocols unless you understand and accept these risks. By using the Wallet Access Service, you acknowledge the potential risks associated with Protocols, and Digital Assets and the use of or participation in Protocols and related activities, which include, but are not limited to:

- a. **Risk Associated with Protocols and Downstream Protocols.** As Digital Assets are based on blockchain protocols, any malfunction, breakdown or abandonment of the Protocol or Downstream Protocol or other technological difficulties may have a material adverse effect on or prevent access to or use of Digital Assets. These include, but are not limited, to the non-exhaustive list set out below:
 - i. ineffectiveness of the informal groups of developers contributing to the protocols;
 - ii. ineffectiveness of the network validators, miners, block producers, and/or of the consensus mechanisms to secure a blockchain network against confirmation of invalid transactions;
 - iii. disputes among the developers or validators;
 - iv. changes in the consensus or validation schemes that underlie a blockchain network, including, but not limited to, shifts between so-called “proof of work” and “proof of stake” schemes which negatively affect the blockchain network;
 - v. the failure of cybersecurity controls or security breaches of a blockchain network;
 - vi. undiscovered technical flaws in a blockchain network;
 - vii. the development of new or existing hardware or software tools or mechanisms that could negatively impact the functionality of the systems;
 - viii. decrease in value of Digital Assets associated with a blockchain network; and
 - ix. infringement of intellectual property rights by a blockchain network’s participants.
 - x. any malfunction, breakdown, abandonment, unintended function, unexpected functioning of or attack on the Protocol or Downstream Protocol may have an adverse effect on Digital Assets transferred to it, including causing the smart contracts to malfunction or function in an unexpected or unintended manner.
- b. **Regulatory Risks.** Regulatory actions could negatively impact the Protocol, Downstream Protocol or the development or deployment of decentralized finance (“DeFi”) strategies or smart contracts in various ways. In such a case, there is a risk that you and PWLLC may need to pause or restructure the collaboration.
- c. **Weaknesses or Exploitable Breakthroughs in the Field of Cryptography.** Advances in cryptography, or technical advances such as the development of quantum computing, could present risks to cryptocurrencies, Protocols and Downstream Protocols by rendering ineffective the consensus mechanism that underpins the protocol, which could result in the theft, loss or decreased utility of DeFi strategies or smart contracts.

Smart contracts, blockchain application software and blockchain platform protocols are still in an early development stage and relatively unproven.

- d. **Unanticipated Risks.** Cryptographic tokens and smart contracts are a relatively new and comparatively untested technology. There are risks that we cannot anticipate. Further risks may materialize as unanticipated combinations or variations of the discussed risks or the emergence of new risks.
- e. **Smart Contracts Risks.** A smart contract is an open-source autonomous computerized algorithm capable of executing code to implement the terms of an agreement. Smart contracts create a variety of new risks to you with no legal recourse, including, but not limited to, coding errors (where an error in the implementation of the smart contract causes financial loss to the you), rug pulls (where the smart contract developers intentionally create backdoors in the code to withdraw funds or cause other losses), governance issues (where the holders of the governance Digital Assets vote to take a decision which negatively affects the value of the funds in the smart contract), high “gas” fees (where the transaction fees to execute the smart contract climb to high levels due to demand), etc.
- f. **Bridging and Wrapping Risks.** Use of wrapped, bridged, or otherwise synthetic representations of Digital Assets - including assets such as Wrapped Bitcoin (WBTC) or similar custodian-dependent tokens - may result in loss of peg or parity with the underlying asset, non-redeemability, or inability to unwrap or convert due to bridge failure, custodian insolvency or misconduct, changes in custodian ownership or control, smart contract failure, regulatory action, or changes in the custodian's operations or reserves. Any such divergence or failure may cause partial or total loss of value.

Additionally, Strategies may involve the conversion, deployment, or exchange of your deposited Digital Assets into other Digital Assets, including stablecoins, wrapped tokens, liquid staking tokens, or other derivative or synthetic instruments. The assets held within a Strategy at any given time may therefore differ from the asset you originally deposited. These downstream assets carry their own independent risks, including but not limited to issuer or custodian default, loss of peg, redemption restrictions, liquidity constraints, and regulatory action. Any of the foregoing could result in a Strategy returning less value than the amount originally deposited, up to and including total loss.

- g. **Redemption Controls and Delays.** Access to, redemption from, or withdrawal of Digital Assets from Protocols or Downstream Protocols may be delayed, limited, or prevented by protocol-level controls, including cooldown periods, queues, redemption gates, rate limits, pauses, or similar mechanisms. These controls are outside our control and may apply without notice.
- h. **Consequences of Loss.** If a Protocol, Downstream Protocol, or associated smart contract fails, or if assets are lost due to liquidity shortfall, bad debt, exploit, or other technical or governance events, you may not recover your Digital Assets. We do not guarantee or insure the return of any Digital Assets or the performance of any Protocol or Downstream Protocol.
- i. **Price and Display Divergence.** Displayed prices, yields, notional balances, or other informational outputs may be indicative, stale, or sourced from third parties and may not reflect on-chain execution or settlement outcomes. Amounts ultimately returned

from Protocols or Downstream Protocols may differ materially from displayed or notional values.

- j. **DeFi Application Risks.** Each Downstream Protocol holds specific risks, which include:
 - i. Liquidity risks.
 - ii. Risks related to the malfunctioning of algorithms.
 - iii. Other technical risks: the smart contracts not behaving as intended by the developers. It is very difficult to code error-free, so there is always some level of technical risk that exists, even after the code has been audited.
 - iv. Risk related to external information influencing how the smart contracts operate to the detriment of other users: for example, an oracle could provide malicious data, and an administrator could change a system parameter or governance procedures could be co-opted.
 - v. Economic incentive failure risk: Many Downstream Protocols, especially in the DeFi space, rely on economic incentives to encourage network participants to perform certain actions. These incentives could fail to encourage the right behavior or not be adequate enough, leading to other users being adversely impacted.
- k. **Liquid Staking.** Staking Tokens are receipt tokens that allow users to directly participate in staking while also maintaining the ability to use their Staking Tokens elsewhere in DeFi ecosystems or transfer ownership of their original staked tokens. Staking Tokens provide increased liquidity and capital efficiency to the DeFi markets, but they are a new product with an uncertain legal and regulatory regime. The primary risk of liquid staking is that the value of any Staking Tokens may de-peg from the value of the original or underlying tokens. Staking Tokens are not automatically pegged to the original or underlying staked tokens through algorithmic means and may trade freely on the market, where prices are determined by market forces. This means that Staking Tokens may start selling for much lower than their original or underlying tokens during a bear market or a liquidity crunch. For example, in June 2022, the stETH token, based on Ethereum (ETH), also depegged about 7% from ETH because of market pressures.
 - i. Staking Tokens have an uncertain legal and regulatory regime in some jurisdictions and there may be significant changes and developments in the future.
 - ii. Finally, Staking Tokens have lower liquidity compared to the regular or underlying tokens. While the Staking Token market has grown significantly, Staking Tokens do not benefit from the same liquidity as the underlying staked tokens.
- l. **Immutable Transaction Risks.** Blockchain is a chronologically ordered ledger of all validated transactions across certain digital asset networks. It is shared among users for each applicable digital asset network. Each “block” in the “chain” contains a confirmed transaction. Just as the blockchain creates a public record of certain digital asset network transactions, it also creates an immutable one. Transactions that have been verified, and thus recorded as a block on the blockchain, generally cannot be undone. Even if the transaction turns out to have been in error, or due to theft of your

Digital Assets, the transaction is not reversible. The blockchain may be susceptible to hacking or other attacks that seek to manipulate the ledger. Blockchains that are less established or not as widely used are typically more susceptible to these types of attacks.

- m. **Failure of Blockchain Projects.** Blockchain technologies, Digital Assets, and digital asset sales are rapidly evolving areas from a regulatory, technology and utility perspective. Due to the technically complex nature of the blockchain networks and platforms created by new projects and companies, they may from time to time face unforeseeable and/or unresolvable difficulties. Accordingly, the development of the blockchain networks or platforms could fail, terminate or be delayed at any time for any reason (including, but not limited to, the lack of funds). Such development failure or termination may render the Digital Asset-assets untransferable, reduced, with no utility or obsolete.
- n. **Open-Source Networks Risks.** Open-source blockchain networks use a cryptographic protocol to govern the peer-to-peer interactions between computers. The code that sets forth the protocol is typically informally managed by a development team known as the core developers. Some of the inherent risks include:
 - i. core developers may propose amendments to a network's source code through software upgrades that alter the protocols and software of the network and the properties of the underlying Digital Asset-assets. To the extent that a significant majority of the users on a network install such software upgrade, the network would be subject to new protocols and software that may adversely affect its value;
 - ii. core developers and contributors are generally not directly compensated for their contributions in maintaining and developing the network protocol. Consequently, there is a lack of financial incentive for developers to maintain or develop the blockchain network and the core developers may lack the resources to adequately address emerging issues with the protocol. Even if a protocol is currently supported by core developers, there can be no guarantee that such support will continue or be sufficient in the future;
 - iii. the source codes may contain bugs, defects, inconsistencies, flaws or errors, which may disable some functionality, create vulnerabilities or cause instability in the network.
- o. **Price Manipulation Risks.** The number of Digital Assets traded for a given network and the number of venues available for trading may be very low, making the market price of the Digital Assets more easily manipulated. While the risk of market manipulation exists in connection with any markets, the risk may be greater for Digital Assets.
- p. **Fluctuation in Prices.** The price of Digital Assets has fluctuated widely over the past few years and is likely to continue to experience significant price fluctuations. Digital asset markets have historically experienced extended periods of flat or declining prices, in addition to sharp fluctuations. The global market for Digital Assets is characterized by supply and demand constraints that generally are not present in the markets for commodities or other assets such as gold and silver. There is no assurance that Digital Assets will maintain their long-term value in terms of future purchasing

power or that the acceptance of digital asset payments by mainstream retail merchants and commercial businesses will continue to grow.

- q. **Loss of Private Keys.** A private key, or a combination of private keys, is necessary to control and dispose of Digital Assets stored in digital wallets or vaults. Accordingly, loss of requisite private keys associated with these digital wallets or vaults will result in the loss of such Digital Assets, and the private keys will not be capable of being restored by the network.
- r. **Malicious Actors.** If a malicious actor or botnet obtains control of more than fifty percent (50%) of the processing power on a network, such actor or botnet could manipulate the network. If a malicious actor or botnet (a volunteer or hacked collection of computers controlled by networked software coordinating the actions of the computers) obtains a majority of the processing power dedicated to mining on a network, it may be able to alter the blockchain on which the network and most transactions rely by constructing fraudulent blocks or preventing certain transactions from completing in a timely manner, or at all. The malicious actor or botnet could control, exclude or modify the ordering of transactions. The malicious actor could “double-spend” its own Digital Assets and prevent the confirmation of other users’ transactions. To the extent that such a malicious actor or botnet did not yield its control of the processing power on the network or the community did not reject the fraudulent blocks as malicious, reversing any changes made to the blockchain may not be possible.
- s. **Cryptographic Protection.** Cryptography is evolving, and security, in general, cannot be guaranteed to exist at all times. Advancement in cryptography technologies and techniques, including, but not limited to, code-cracking, hacking and the development of artificial intelligence or quantum computers, could be identified as risks to all cryptography-based systems, including Digital Assets themselves. When such technologies or techniques are applied, adverse outcomes such as theft, loss, disappearance, destruction, devaluation or other compromises of Digital Assets may result. Hackers or other malicious groups or organizations may attempt to interfere with the Digital Assets in a variety of ways, including, but not limited to, malware attacks, denial of service attacks, consensus-based attacks, Sybil attacks, smurfing and spoofing. Further, many networks rely on open-source software and un-permissioned distributed ledgers. Accordingly, anyone may intentionally or unintentionally compromise the core infrastructural elements of a network and its underlying technologies. Consequently, such compromise may result in the loss of Digital Assets. Therefore, the security of Digital Assets cannot be guaranteed, due to the unpredictability of cryptography or security innovations or interference by hackers or other malicious groups or organizations.
- t. **Risks of Participation in DeFi Protocols and Related Activities.** Participation in DeFi protocols, applications, or activities involves additional and distinct risks from those associated with holding or transacting in Digital Assets. DeFi systems are often experimental, open-source, and highly composable, meaning that the functioning of one protocol can depend on the reliability or integrity of others. Failures or vulnerabilities in any component protocol, liquidity pool, or integration partner may have cascading effects on your’ positions or Digital Assets.

You should be aware of the following non-exhaustive risks specific to DeFi participation:

- iv. **Protocol Interdependence and Composability Risk:** DeFi protocols frequently interact with other smart contracts or liquidity sources. A malfunction, exploit, or change in one linked protocol may adversely affect the performance or security of another.
- v. **Governance and Administrative Risks:** DeFi protocols may rely on decentralized or community-based governance mechanisms. Decisions by governance token holders or administrators, such as contract upgrades, parameter changes, or fee adjustments, may negatively impact you or result in loss of value.
- vi. **Liquidity and Market Depth Risks:** Liquidity in DeFi protocols can be volatile and dependent on market incentives. Sharp withdrawal activity or the removal of liquidity providers can lead to slippage, loss of access, or inability to unwind positions at expected values.
- vii. **Third-Party Integration Risks:** Interfaces, wallets, data oracles, and analytic tools used to access DeFi protocols may be operated by unaffiliated third parties. Any security failure, data inaccuracy, or interruption in these tools may result in financial loss or transaction failure.
- viii. **Automated Liquidation and Slashing Risks:** Certain DeFi mechanisms employ automatic liquidation or slashing logic triggered by on-chain conditions or oracle data. You may lose part or all of their contributed assets due to automated actions without prior notice or recourse.
- ix. **Regulatory and Jurisdictional Risks:** DeFi protocols may operate without a defined legal entity or clear regulatory framework. Regulatory developments could impact the ability to access, use, or continue supporting DeFi activities, and may require changes to participation models or user interfaces.

You should evaluate your technical understanding and risk tolerance before engaging with Protocols. Participation is entirely at your discretion and responsibility, and there is no assurance that any DeFi system will function as intended or maintain continued availability.

ANNEX F

Points Programme

This Annex F (this “Points Programme Annex”) incorporates by reference and supplements the Kraken.com Canadian Terms of Service (excluding all Annexes thereto, “Terms”) as if the entirety of the Terms were set forth in this Points Programme Annex. Capitalized terms used but not defined in this Points Programme Annex have the meanings given to them elsewhere in the Terms. In the event of a conflict between the Terms and this Points Programme Annex, the terms of this Points Programme Annex will control solely to the extent of the conflict and solely with respect to the subject matter of this Points Programme Annex.

Our provision of the Points Programme set out in **this Points Programme Annex** are not regulated.

1. Points Programme

- a) **Points Programme overview.** We may, from time to time, subject to restrictions in certain jurisdictions, and at our sole discretion, make available a programme under which eligible

users may accumulate points (“Points”) as an internal indicator of their engagement and participation across our Services and the Platform (the “Points Programme”). The Points Programme, if and when offered, will be subject to these Terms (including this Points Programme Annex) and any additional terms, conditions, rules, or programme-specific documentation that we may publish on the Platform or our website from time to time (the “Programme Terms”), which will include the name under which the Points Programme is offered.

- b) **No obligation to offer.** We are under no obligation to offer, maintain, or continue any Points Programme, and the inclusion of this Points Programme Annex in these Terms does not indicate that a Points Programme is currently available or will become available in any particular jurisdiction.
- c) **Contracting entity.** The Points Programme is provided by Payward Inc. Where you participate in the Points Programme, the terms in this Points Programme Annex apply to you in addition to the Terms. To the extent of any conflict, the terms of this Points Programme Annex will take precedence. Further information on the Points Programme, if and when offered, may be made available on our website.
- d) **Disruption to Points Programme.** We cannot guarantee uninterrupted or error-free operation of the Points Programme or that we will correct all defects or prevent disruptions or unauthorised access. We may suspend or discontinue the Points Programme in our sole discretion at any time.

2. Eligibility

- a) **Points Programme eligibility.** Participation in the Points Programme is subject to the Conditions and any additional eligibility criteria determined by us in our sole discretion and notified to you through the Platform or our website. We reserve the right to restrict or deny participation to any user at any time, including on the basis of Account status, jurisdiction of residence, compliance history, or any applicable legal or regulatory requirements. The Points Programme may not be available in all Canadian jurisdictions and not all users or Account types may be eligible to participate.

3. Nature of Points

- a) **Description of Points.** Points are an internal metric recorded by us against your Account. They are used solely to recognise engagement and participation across our Services and the Platform.
- b) **Characteristics of Points.** Points:
 - have no monetary value and do not represent any economic interest of any kind;
 - are not a Digital Asset, token, financial instrument, security, currency, or store of value;
 - are not redeemable or exchangeable for Fiat Currency, Digital Assets, tokens, fee credits, rebates, goods, or services;
 - are not transferable, assignable, or capable of being pledged, gifted, combined with the Points of any other Account, or otherwise dealt with, except as expressly permitted by the Programme Terms;
 - do not constitute property and title to Points does not pass to you; and

- do not represent any right, claim, or entitlement against us or any of our affiliates, including any entitlement to receive tokens, airdrops, or other benefits of any kind.

c) **No expectation of return.** Accumulation of Points does not create any expectation of economic return, financial benefit, or future value.

4. **Accumulation of Points**

a) **Accumulation methods.** If a Points Programme is made available, Points may be accumulated by engaging in certain activities or behaviours across our Services and the Platform as specified in the Programme Terms from time to time. The activities that may be recognised, the manner and rate at which Points are accumulated, and any applicable limits, caps, or algorithmic weightings are subject to change by us at any time in our sole discretion.

b) **No guarantee of accumulation.** We do not guarantee that any particular activity will result in the accumulation of Points. Points will only be recorded once a qualifying activity has been verified and processed by us in accordance with the Programme Terms. Accumulation of Points should not be interpreted as an incentive to increase trading activity or any other particular behaviour on our **Services** or the Platform.

c) **Adjustment of Points.** We reserve the right to withhold, adjust, reverse, or cancel Points at any time if we determine, in our sole discretion, that they were recorded in error or as a result of fraudulent, abusive, manipulative, or otherwise prohibited conduct, or if you have breached these Terms or the Programme Terms.

5. **Expiry and Forfeiture**

a) **Expiry and forfeiture of Points.** Points may be subject to expiry or forfeiture in circumstances including: inactivity of your Account for a specified period; breach of these Terms or the Programme Terms; suspension, restriction, or termination of your Account pursuant to Section 16 (Suspension; Termination; Discontinuance); or discontinuance of the Points Programme. Upon termination of your Account for any reason, any accrued Points will be immediately forfeited and cancelled without compensation or liability to us.

6. **Changes, Suspension and Discontinuance**

a) **Our rights.** We may, at any time and in our sole discretion, and where required by applicable law upon notice to you:

- modify, suspend, or discontinue the Points Programme in whole or in part;
- change the Programme Terms, including the activities recognised under the programme, the manner in which Points are accumulated, the availability of any Benefits, and any expiry terms;
- adjust, cancel, or expire any Points balance, including on a programme-wide basis; or
- terminate your participation in the Points Programme.

Any changes to the Programme Terms will be effective upon posting on the Platform or our website, or such other date as we may specify. Your continued participation in the Points Programme following any such change will constitute your acceptance of the revised Programme Terms.

ANNEX G

KRAKEN PROP

1. What is Kraken Prop and Kraken Funded?

- a) Kraken Prop is a feature that enables access to a proprietary trading programme operated by third parties. Kraken acts solely as the platform interface. The evaluation service is provided by Breakout Trading Group, LLC ("Breakout") and the funded trading arrangement, if you pass the evaluation, is operated by Payward Oceanic Ltd., a company incorporated in the British Virgin Islands ("Payward Oceanic"). Kraken is not a party to either arrangement.

2. Third-Party Agreements

- a) Before purchasing an evaluation, you must accept Breakout's Evaluation Terms of Service, which govern the evaluation process, fees, and outcomes. If you pass, you will be required to sign a Funded Trader Agreement ("FTA") directly with Payward Oceanic before any funded trading arrangement is activated.
- b) Those agreements, not these terms, set out the full details of how the programme works, the risks involved, your profit entitlement, and the obligations of each party.
- c) All trading signals submitted during the evaluation or funded stage are simulated and funds used are virtual. These signals are used for evaluation purposes or by Payward Oceanic to assess whether to act on a given signal.

3. Eligibility

To access Kraken Prop you must:

- be at least 18 years of age;
- hold a valid, verified Kraken Pro account in good standing; and
- be located in a jurisdiction where Kraken Prop is made available (see Section 4).

4. Availability

- a) Kraken Prop is available only in jurisdictions where Kraken determines it is permissible to offer access to the programme. Availability may be restricted or withdrawn at any time without prior notice, including following regulatory guidance. By accessing Kraken Prop you confirm you are not in a restricted jurisdiction.

5. Kraken's Role and Liability

- a) Kraken provides the platform interface only. Kraken does not operate the evaluation, make execution decisions, or hold funds on your behalf in connection with Kraken Prop. Kraken is not responsible for the acts or omissions of Breakout or Payward Oceanic, for the outcome of any evaluation, or for any payment due to you under the FTA.

6. Suspension and Amendments

Kraken may suspend or remove your access to Kraken Prop at any time, including where you breach this Agreement or where Kraken decides to discontinue the feature. Kraken may

amend these terms by providing notice in accordance with Part A. Continued use following the effective date of any amendment constitutes acceptance of the revised terms.

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